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CITY OF BERKELEY

CITY COUNCIL REGULAR MEETING

JANUARY 21, 2025

>> CAPTIONER, ARE YOU ON AND ABLE TO CAPTION SO WE CAN SEE IF WE CAN SEE SOME CAPTIONING TEXT. TEST, TEST, TEST.

>> HOW'S IT LOOKING?

>> YEP, WE ARE GOOD TO GO.

>> YEP.

>> RECORDING IN PROGRESS.

>> OKAY.

>> MAYOR ISHII: HELLO, GOOD EVENING, EVERYONE. I AM GOING TO -- I WOULD LIKE TO CALL TO ORDER THE REGULAR MEETING OF THE BERKELEY CITY COUNCIL ON JANUARY 21ST. WELCOME BACK, EVERYONE, AFTER A WINTER BREAK. CAN WE HAVE THE ROLL PLEASE?

>> COUNCILMEMBER KESARWANI.

>> HERE.

>> COUNCILMEMBER TAPLIN

>> PRESENT. COUNCILMEMBER BARTLETT IS ABSENT. COUNCILMEMBER TREGUB.

>> PRESENT.

>> COUNCILMEMEBER O'KEEFE.

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>> PRESENT.

>> COUNCILMEMBER BLACKABY.

>> PRESENT.

>> COUNCILMEMBER LUNAPARRA.

>> PRESENT.

>> AND MAYOR ISHII.

>> HERE.

>> MAYOR ISHII: THANK YOU VERY MUCH. I WANT TO MAKE AN ANNOUNCEMENT IN CASE ANYONE IS HERE FOR THE ZAB APPEAL WHICH IS ITEM 25. THE APPEAL HAS BEEN WITHDRAWN BY THE APPELLANT. YOU ARE WELCOME TO STAY, BUT I WANTED TO LET FOLKS KNOW IF YOU ARE HERE FOR THAT ITEM. FOR THE FIRST MEETING EVERY MONTH WE HAVE A LAND ACKNOWLEDGMENT, WE DECIDED WE WOULD TAKE TIMES READING THE ANNOUNCEMENT, LAST MONTH WAS COUNCILMEMBER KESARWANI, THANK YOU FOR DOING THAT. THIS WEEK IS COUNCILMEMBER TAPLIN.

>> T. TAPLIN: LAND ACKNOWLEDGEMENT STATEMENT: THE CITY OF BERKELEY RECOGNIZES THAT THE COMMUNITY WE LIVE IN WAS BUILT ON THE TERRITORY OF XUCYUN, THE ANCESTRAL AND UNCEDED LAND OF THE CHOCHENYO OHLONE PEOPLE, THE ANCESTORS AND DESCENDANTS OF THE SOVEREIGN VERONA BAND OF ALAMEDA COUNTY. THIS LAND WAS AND CONTINUES TO BE OF GREAT IMPORTANCE TO ALL OF THE OHLONE TRIBES AND DESCENDANTS OF THE VERONA BAND. AS WE BEGIN OUR MEETING TONIGHT, WE ACKNOWLEDGE AND HONOR THE ORIGINAL INHABITANTS OF

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BERKELEY, THE DOCUMENTED 5,000-YEAR HISTORY OF A VIBRANT COMMUNITY AT THE WEST BERKELEY SHELLMOUND, AND THE OHLONE PEOPLE WHO CONTINUE TO RESIDE IN THE EAST BAY. WE RECOGNIZE THAT BERKELEY'S RESIDENTS HAVE AND CONTINUE TO BENEFIT FROM THE USE AND OCCUPATION OF THIS UNCEDED STOLEN LAND SINCE THE CITY OF BERKELEY'S INCORPORATION IN 1878. AS STEWARDS OF THE LAWS REGULATING THE CITY OF BERKELEY, IT IS NOT ONLY VITAL THAT WE RECOGNIZE THE HISTORY OF THIS LAND, BUT ALSO RECOGNIZE THAT THE OHLONE PEOPLE ARE PRESENT MEMBERS OF BERKELEY AND OTHER EAST BAY COMMUNITIES TODAY. THE CITY OF BERKELEY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE LISJAN TRIBE AND TO CREATE MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGEMENT. THE CITY WILL CONTINUE TO BUILD RELATIONSHIPS WITH THE TRIBE AND CONTINUE MEANINGFUL ACTIONS THAT UPHOLD THE INTENTION OF THIS LAND ACKNOWLEDGMENT.

>> MAYOR ISHII: THANK YOU SO MUCH, COUNCILMEMBER. WE HAVE NO CEREMONIAL MATTERS THIS EVENING, SO I WILL MOVE US ON TO CITY MANAGER COMMENTS.

>> NO COMMENTS TONIGHT, MAYOR ISHII.

>> MAYOR ISHII: THANK YOU. IS OUR CITY AUDITOR HERE? THANK YOU SO MUCH.

>> STAFF: WONDERFUL. CAN YOU HEAR ME? OKAY. I WANTED TO TONIGHT, SHARE OUR 2024 AUDIT RECOMMENDATION FOLLOW UP REPORT THAT MY

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OFFICE RELEASED IN DECEMBER. I WILL SHARE WHY WE FOLLOW UP ON AUDIT RECOMMENDATIONS AS WELL AS SOME OF THE HIGHLIGHTS FROM A RECENT REPORT. SO EVERY -- WHY WE FOLLOW UP? EVERY REPORT THAT WE ISSUE INCLUDES RECOMMENDATIONS FOR DEPARTMENTS TO SUPPORT THEM TO MEET THEIR MISSION GOALS AND ADDRESS THE IDENTIFIED RISKS. AFTER THE REALTIES OF THE AUDIT, DEPARTMENTS ARE RESPONSIBLE FOR PROVIDING UPDATES ON THE STATUS OF THEIR RECOMMENDATIONS ON THEIR IMPLEMENTATION OF THESE RECOMMENDATIONS. THIS HELPS YOU AS THE CITY COUNCIL, IT HELPS THE PUBLIC AND IS HELPS OUR OFFICE TRACK THE PROGRESS DEPARTMENTS ARE MAKING AND WHERE THEY NEED MORE SUPPORT. LAST MONTH, SIX DEPARTMENTS SHARED UPDATES WITH CITY COUNCIL AS INFORMATION ITEMS ON THE CITY COUNCIL AGENDA. OUR NOT AT ALL REPORT PROVIDES A COMPREHENSIVE OVERVIEW OF WHERE THE CITY STANDS IN IMPLEMENTING THESE RECOMMENDATIONS AND WHAT RISKS STILL EXIST. THE REPORT COVERS THE PERIOD FROM MAY TO NOVEMBER OF 2024 ON THE AUDITS AND THE AUDIT RECOMMENDATIONS ISSUED IN THE PAST FIVE YEARS. IN ORDER TO STREAMLINE THE REPORTING, WE ARE MOVING TO AN NOT AT ALL FOLLOW UP PROCESS FOR MOST AUDITS INCLUDING RELEASING ANNUAL REPORTS LIKE THIS ONE. THIS PROCESS WILL MAKE IT EASIER FOR STAKEHOLDERS TO KNOW WHEN TO EXPECT UPDATES AND REDUCE THE BURDEN ON UNDERSTAFFED DEPARTMENTS. PLUS, WE STILL HAVE OUR ONLINE DASHBOARD WHERE ACCOUNT AND THE PUBLIC

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CAN GET REGULAR UPDATES. MOVING ON TO THE FINDINGS OF THE REPORT, THE CITY IS MAKING PROGRESS. SINCE MAY, THE LIBRARY AND DEPARTMENTS ACROSS THE CITY HAVE IMPLEMENTED NINE RECOMMENDATIONS, FOR EXAMPLE, IN ORDER TO IMPROVE REPORTING AND TRANSPARENCY THE FIRE DEPARTMENT HAS A DASHBOARD AND IS SHARING PROGRESS AND OUTCOMES WITH THE DISASTER AND FIRE SAFETY COMMISSION FROM THE MEASURE FF AUDIT. IN RESPONSE TO OUR RECOMMENDATION REGARDING STRENGTHENING THE CITY'S DEBT MANAGEMENT, THE FINANCE DEPARTMENT UPDATED ITS DEBT MANAGEMENT POLICY WITH THE CITY COUNCIL APPROVAL AND LOWERED THE BOND THRESHOLD FROM 15 TO 6% OF ASSESSED VALUE. IN TOTAL DEPARTMENTS HAVE IMPLEMENTED 37% OR 42 OF THE 113 AUDIT RECOMMENDATIONS RELEASED SINCE 2019. THIS WILL PROVIDE A BASELINE GOING FORWARD IN TRACKING RECOMMENDATIONS. DEPARTMENTS MADE ADDITIONAL PROGRESS ON OTHER RECOMMENDATIONS STARTING OR PARTIALLY IMPLEMENTING THEM. FOR EXAMPLE, THE ENVIRONMENTAL HEALTH DIVISION STARTED OR PARTIALLY IMPLEMENTED EIGHT OUT OF NINE RECOMMENDATIONS PROPOSED IN THE RESTAURANT INSPECTIONS AUDIT RELEASED IN JULY. HOWEVER, 58 AUDIT RECOMMENDATIONS ACROSS FIVE DEPARTMENTS AND THE LIBRARY AND THE MAYOR AND CITY COUNCIL REMAIN UNIMPLEMENTED. ADDITIONALLY, WE DROPPED TEN RECOMMENDATIONS FOR THE FIRE DEPARTMENT. WE DROPPED RECOMMENDATIONS AFTER FIVE YEARS. HOWEVER, THE FIRE DEPARTMENT

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IS CONTINUING TO WORK ON SEVERAL OF THESE RECOMMENDATIONS, INCLUDING ADJUSTING BMC LANGUAGE AND STAFFING RESPONSE TO INCREASED CONSTRUCTION. PER COUNCILMEMBER BLACKABY'S REQUEST, THE FIRE DEPARTMENT WILL SHARE A MEMO WITH UPDATES TO COUNCIL IN SIX MONTHS. YOU CAN LEARN MORE ABOUT OUR AUDIT RECOMMENDATIONS ACROSS THE SEVEN DEPARTMENTS ON OUR DASHBOARD. I JUST WANT TO CONCLUDE BY THANKING ALL OF THE DEPARTMENTS AND THE CITY FOR THEIR WORK ON THEIR COOPERATION IN IMPLEMENTING THESE RECOMMENDATIONS, SUBMITTING UPDATES AND WORKING TO IMPROVING SERVICES FOR THE BERKELEY COMMUNITY. I WANT TO THANK THE CITY COUNCIL FOR YOUR COMMITMENT TO ACCOUNTABILITY AND PROVIDING THIS FORM TO TRACK THE CITY'S PROGRESS ON IMPLEMENTING AUDIT RECOMMENDATIONS. AND I WANT TO THANK MY TEAM OF DEDICATED PUBLIC SERVANTS FOR DOING THIS IMPORTANT WORK. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH, APPRECIATE YOUR COMMENTS AND THE REPORT AS WELL. WE WILL NOW BE TAKING PUBLIC COMMENT ON NON-AGENDA MATTERS. DO WE HAVE ANY?

>> B. BLACKABY: THIS MIGHT THERE BE AN OPPORTUNITY TO ASK QUESTIONS OF THE CITY AUDITOR?

>> MAYOR ISHII: YES, GO AHEAD. I AM SORRY. YOU CAN COME BACK UP IF YOU DON'T MIND.

>> B. BLACKABY: NO WORRIES. THANK YOU SO MUCH, AUDITOR, FOR ALL OF -- TO YOU AND YOUR TEAM FOR YOUR HARD WORK. I WAS CURIOUS IF

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YOU COULD LET US KNOW WHICH ARE THE RECOMMENDATIONS THAT THE MAYOR AND COUNCIL ARE RESPONSIBLE FOR, ONE OF WHICH IT APPEARS HAS STARTED AND ONE OF WHICH IT APPEARS HAS YET TO START?

>> STAFF: WE CAN GO BACK AND LOOK AT THAT. I KNOW ONE OF THE RECOMMENDATIONS IS PERTAINING TO THE STAFF RETENTION REPORT WITH IDENTIFYING A WAY OF GATHERING REGULAR INFORMATION FROM STAFF, BUT WE CAN LOOK UP THE OTHER RECOMMENDATION AND GET THAT INFORMATION TO YOU.

>> B. BLACKABY: THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. OTHER QUESTIONS? GREAT. I WOULD LIKE TO MOVE TO PUBLIC COMMENT NOW.

>> STAFF: YES, WE JUST HAVE THREE CARDS FOR IN-PERSON NON-AGENDA COMMENTS. AND THE THREE NAMES ARE -- LISA TEAGUE, MARY ANN, AND CAROL. YOU CAN COME UP IN ANY ORDER, UP TO THE PODIUM THERE.

>> MAYOR ISHII: YOU CAN GO AHEAD AND BEGIN YOUR COMMENT.

>> HI, GOOD EVENING. MY NAME IS LISA TEAGUE. I AM HERE THIS EVENING TO ASK ABOUT THE -- THE -- I AM GOING EARLY MORNING CONSTRUCTION STARTS AT THE PEOPLE'S PARK PROJECT. THE CONSTRUCTION HAD -- WELL, THIS MORNING, THERE WERE LIGHTS ON AND A TRUCK BEING NOISILY UNLOADED. I LIVE ACROSS THE STREET. AS DO MANY OTHER PEOPLE, INCLUDING STUDENTS WHO LIVE IN MARTINEZ ON THE OTHER SIDE. 4:15 A.M. THERE WAS NOISY UNLOADING OF A VEHICLE ALONG WITH BRR AND BANG, BANG, BANG, ETC., ETC. NOW, ACCORDING

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TO THE BERKELEY MUNICIPAL CODE AND THE STANDARDS FOR CONSTRUCTION THEY ARE NOT SUPPOSED TO START CONSTRUCTION NOISES UNTIL 7:00 A.M. THERE ARE SOME, YOU KNOW, CAVEATS ABOUT THE AMOUNT OF NOISE, BUT REALLY, IT'S PRETTY CLEAR THAT THEY ARE NOT SUPPOSED TO START FROM 7:00 A.M. I DON'T KNOW IF THE UNIVERSITY IS REQUIRED TO ABIDE BY BERKELEY NOISE ORDINANCES, ALTHOUGH, THEY DO ENCOURAGE STUDENTS TO ABIDE BY BERKELEY QUIET HOURS BY ABOUT 10:00 P.M., SO THAT IS SOMETHING THAT THEY HAVE NOTICED AND IT'S VERY WEARING, HONESTLY, TO NOT HAVE VERY MUCH OF A BREAK FROM THE CONSTANT NOISE. I SAID 7 TO 5, THAT'S COOL, BUT BEYOND THAT, IT'S REALLY EXCESSIVE.

>> MAYOR ISHII: THANK YOU SO MUCH. MY STAFF WILL FOLLOW UP WITH YOU. APPRECIATE YOUR COMMENT. THANK YOU. NEXT SPEAKER. AND DOES THE THIRD SPEAKER WANT TO COME UP AS WELL JUST SO YOU ARE NEARBY?

>> GOOD EVENING, LADIES AND GENTLEMEN. I COME BEFORE YOU TODAY TO SPEAK FOR PEOPLE WHO DO NOT FEEL THAT THEY HAVE A VOICE IN THIS CITY. THOSE ARE THE PEOPLE WHO WERE WIPED OUT DURING BLACK FRIDAY WHEN A STORM CAME IN. WE WERE AT THE ENCAMPMENT, THE HOMELESS ENCAMPMENT IN FRONT OF THE CITY AND A STORM CAME IN AND WIPED US ALL OUT. I NEARLY DIED. MY NEIGHBOR HAD TO -- HAD TO TAKE ME OUT OF MY TENT, AND TRY TO SAVE MY LIFE. NOW, WHAT ALSO HAPPENED IS THE CITY CAME THROUGH AND DID A SWEEP AND TOOK ALL

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OF OUR PERSONAL PROPERTY. I HAVE LOST MY LAPTOP, MY PHONE. I HAVE TALKED TO MR. BUDDENHAGEN ABOUT ESTABLISHING A FUND SO WE CAN GET THAT PROPERTY BACK. THE CITY DID NOT HAVE A RIGHT TO TAKE US OUT AND THE ONLY REASON THEY DID AND DID NOT EVEN WANT TO GET OUR PROPERTY BACK TO US IS BECAUSE THEY ASSUMED WE WERE HOMELESS AND THEREFORE, WORTHLESS. SO I ASK YOU TODAY TO ESTABLISH THAT FUND WHERE WE CAN BE REIMBURSED BY THE CITY FOR THEIR THEFT AND EMBEZZLEMENT OF OUR PROPERTY. ALSO, I WANT TO URGE ALL OF YOU TO LOOK AT THE PEOPLE THAT LIVE IN THESE ENCAMPMENT. I AM NOW OVER AT CIVIC CENTER PARK --

>> MAYOR ISHII: I AM SORRY IF YOU COULD FINISH YOUR SENTENCE.

>> NUMBER 8 OF YOUR AGENDA IS ACCEPTANCE FOR A GRANT OF NATIONAL ENDOWMENT.

>> MAYOR ISHII: I AM SORRY, THIS IS ON NON-AGENDA MATTERS.

>> OKAY.

>> MAYOR ISHII: BUT I DID HEAR YOUR COMMENT ABOUT TAKING A LOOK AT FOLKS IN ENCAMPMENTS AND I APPRECIATE YOUR COMMENTS. YOUR TIME IS UP.

>> WE WANT A WEBSITE. THERE ARE SO MANY PEOPLE THAT ARE IN THOSE ENCAMPMENTS THAT ARE TALENTED. THEY ARE BRIGHT ARTISTS.

>> MAYOR ISHII: I ABSOLUTELY AGREE WITH YOU, BUT YOUR TIME IS UP, SO I AM GOING TO ASK IF YOU CAN SPEAK WITH MY STAFFER WHO IS IN THE AUDIENCE. HE WILL COME UP AND CHAT WITH YOU AS WELL.

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>> WE NEED YOU YOUR COMPASSION.

>> MAYOR ISHII: THANK YOU.

>> NOT YOUR DISRESPECT. WE ARE NOT VAGRANTS. WE ARE NOT CRIMINALS. WE ARE --

>> MAYOR ISHII: THANK YOU.

>> PEOPLE WHO CONTRIBUTE.

>> MAYOR ISHII: THANK YOU SO MUCH. YOUR POINT IS WELL, TAKEN AND I DEFINITELY UNDERSTAND THE VALUE OF PEOPLE LIVING ON THE STREET.

>> WE HAVE BEEN HERE FOR 50 YEARS, SO COME ON.

>> MAYOR ISHII: THANK YOU SO MUCH. I WANT TO GIVE TIME TO THE NEXT SPEAKER, SO I APPRECIATE YOUR COMMENTS, THANK YOU.

>> I WANT TO SET UP AN APPOINTMENT WITH YOU.

>> MAYOR ISHII: THANK YOU.

>> YOU'RE WELCOME.

>> I KNOW YOU HAVE ALL BEEN SENT A LETTER IN TERMS OF THE RESTROOM -- PORTABLE RESTROOM THAT'S BEING ESTABLISHED AT UNIVERSITY AND SAN PABLO. TO PROVIDE SOME HISTORY OF THIS RESTROOM AND THE OTHER RESTROOM AT ADELINE AND ALCATRAZ AND THERE IS NO COMPLAINTS FROM THE COMMUNITY, THEY ARE WELCOMING THESE PORTABLE RESTROOMS. THIS STARTED FROM A RECOMMENDATION FROM THE HOMELESS COMMISSION IN 2017 WHERE WE ASKED FOR WEST ROOMS AND WASH STATIONS THROUGHOUT THE CITY BECAUSE OF THE NEED.

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IT WAS ALSO DURING THE TIME OF THE OUTBREAK IN SAN DIEGO OF HEPATITIS. THE CITY COUNCIL WAS ONBOARD WITH IT, AND CONTRACTED WITH THE CONSULTANTS, THE CITY CONTRACTOR CONSULTANTS WHO HAVE DONE AN EXCELLENT JOB ON THE CITY RESTROOM STUDY. IT IS ONE OF THE MOST THOROUGH REPORTS I HAVE EVER SEEN DONE. THEY DID EXTENSIVE GROUPS INCLUDING THE COMMUNITY MEMBERS. I WAS AT THREE OF THE FOUR GROUPS THAT WORRY -- WHERE THEY MET WITH HOMEOWNERS AND BUSINESS OWNERS AND I WAS AT THE ONE IN WEST BERKELEY AND I DISTINCTLY REMEMBER THAT GROUP RECOMMENDING THAT LOCATION, UNIVERSITY AND SAN PABLO AS WELL AS JAMES KENNEY PARK. IF YOU LOOK AT THE ASSET WIDE RESTROOM STUDY, YOU WILL SEE THAT THEY CONTACTED RIDESHARE DRIVERS, THEY CONTACTED AC TRANSIT, ANYBODY WHO MIGHT NEED A 24/7 RESTROOM, THIS IS AN ABSOLUTE NEED. IT'S IN THE PERMIT PROCESS ABOUT READY TO GO TO BID AND THE PROTEST ABOUT IT, IT'S ESSENTIALLY AGAIN THE FEAR OF THE HOMELESS AND THAT WERE ABUSING IT. I WAS ACTUALLY, AT THE DISTRICT 4 FORUM AND THERE THEY WERE ASKING FOR SOMETHING LIKE THAT DEGRADING ABOUT PUBLIC DEFECATION AND URINATION.

>> MAYOR ISHII: THANK YOU SO MUCH. I APPRECIATE YOUR ACKNOWLEDGEMENT. DO WE HAVE --

>> YES, WE HAVE SPEAKERS ON ZOOM. I WILL TAKE THE FIRST SEVEN SPEAKERS ON ZOOM SINCE WOE ONLY HAVE THREE IN-PERSON. FIRST UP IS KITT. KITT, YOU SHOULD BE ABLE TO UN-MUTE.

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>> THANK YOU VERY MUCH FOR TAKING MY COMMENT. I AM KITT. I AM THE CHAIR OF THE FAIR CAMPAIGN PRACTICES AND THE OPEN GOVERNMENT COMMISSIONS AND I WANTED TO LET YOU KNOW THAT UNFORTUNATELY WE NOW HAVE FOUR VACANCIES. WE HAD A PROBLEM WITH NOT HAVING ENOUGH COMMISSION COMMISSIONERS LAST YEAR AND THANKS TO YOU, YOU APPOINTED FOLKS AND THEN WE HAD EIGHT, BUT UNFORTUNATELY, TWO PEOPLE HAVE MOVED OUT OF TOWN. ONE PERSON WHO SERVED A LONG TIME HAS NOW STEPPED TOWN AND WE ARE BACK TO FIVE COMMISSIONERS. WE ARE ACTUALLY TWO COMMISSIONS. THE OPEN GOVERNMENT COMMISSION IS THE SAME PEOPLE THAT IS THE FAIR CAMPAIGN PRACTICES COMMISSION. WE ARE EX OFFICIO, WE ARE APPOINTED TO BOTH COMMISSIONS AND EACH COMMISSION HAS A FULL SET OF WORK. THE FAIR CAMPAIGN PRACTICE COMMISSION IS RESPONSIBLE WITH ENFORCING THE OPEN BERKELEY ELECTION REFORM ACT AND OPEN GOVERNMENT IS THE OPEN GOVERNMENT ORDINANCE, SO WE HAVE QUITE A BIT OF WORK.

>> NEXT SPEAKER VIDEOS ELLIS.

>> HEAR ME?

>> YES. I AM ROSE. YOU MAY NOT KNOW THAT OUR GROUP HAS HIRED AN ATTORNEY AND WE FILED AN APPEAL TO THE ZONING BOARD'S GRANTING PATRICK KENNEDY IS FULL EXEMPTION FROM CEQA. WE ASK THAT YOU FOLLOW THE LAW. THE UNITED ARTISTS MEETS ALL THE FULL CRITERIA OF HAVING A CEQA. AT THE LAST ZAB HEARING, THE HEADS OF ZAB HID THEIR OWN CITY PEER REVIEW REPORTS DONE BY THE RECONDUCTING

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GROUP, WHICH STATED IN NO UNCERTAIN TERM THIS BUILDING QUALIFIES FOR CEQA. THEY DIDN'T KNOW ABOUT THE ZAB MEMBERS. LASTLY, MAYOR, OUR GROUP HAS REPORTEDLY TRIED TO ARRANGE A MEETING WITH YOU, BUT NO ONE SEEMS TO ANSWER YOUR PHONE AND NO ONE ANSWERS YOUR EMAILS. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH, ROSE, FOR LETTING US KNOW ABOUT THAT. I WILL CHECK IN WITH MY STAFF. NEXT SPEAKER?

>> OKAY. NEXT IS AIMEE BALDWIN. AMY YOU SHOULD BE ALLOWED TO SPEAK, UN-MUTE.

>> HELLO. HI, I THINK I HAD ANOTHER CALLER WHO WAS WILLING TO CEDE THEIR TIME TO ME BECAUSE I NEEDED EXTRA IF THERE IS A MERRILL SIEGEL ON THE COMMENT LIST.

>> STAFF: YES, SO MERRILL IS CEDING -- LET'S SEE, ONE, TWO, THREE -- ACTUALLY, MERRILL IS NOT ONE OF THE TEN SPEAKERS, SO SHE WOULD NOT BE ABLE TO YIELD.

>> OKAY. THAT'S ALRIGHT. I AM WITH A GROUP CALLED BEAUTIFUL SAN PABLO. WE ENDORSE THE COMPLEXION OF MODERN EXAMPLES OF CRIME PREVENTION THROUGH STREETSCAPE AND DESIGN.

>> MAYOR ISHII: SORRY, YOU ARE CUTTING OUT. WE CAN'T HEAR YOU.

>> [INAUDIBLE].

>> STAFF: AIMEE, YOU HAVE A BAD CONNECTION. WE CAN COME BACK TO YOU, THOUGH.

>> CITY PLANNING AND HUMAN CONNECTION THROUGH DIRECT

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VISIBLE -- AND CREATING A SHARED RESPONSIBILITY OVER PUBLIC SPACES. IN OTHER WORDS, PUBLIC SAFETY COME AS A RESULT OF STRONG, DIVERSITY AND WELCOMING AND ACTIVE COMMUNITY. DESIGN CHOICES INCLUDE CLEAR SIGHT LINES AND CHOICES OF MATERIAL THROUGH WINDOWS, DOORS, PORCHES AND SO ON. IS THERE SOMEONE TALKING.

>> STAFF: PLEASE COMPLETE YOUR COMMENTS.

>> MAYOR ISHII: THANK YOU.

>> OKAY. WE ASK THAT CITY PLANNERS GIVE TOP PRIORITY TO CREATING OBJECTIVE DESIGN STANDARDS THROUGHOUT CITY THAT ADHERE TO THE ACCEPTED PRINCIPLES BECAUSE THE DESIGN OF BUILDINGS AND OUR CITY AFFECT HOW WE LIVE AND THE HUMAN CONNECTIONS THAT WE WILL MAKE AND MAINTAIN DURING OUR LIVES. THAT YOU CAN.

>> STAFF: OKAY. NEXT IS ANNA MARTA.

>> HI, THANK YOU FOR TAKING ME. SO I ACTUALLY LIVE IN THE BUILDING THAT'S BY THE WELLS FARGO ON THE CORNER OF SAN PABLO AND UNIVERSITY. THE NORTHWEST BUILDING. AND I HAVE BEEN HERE FOR MANY YEARS. IT'S A CO-OP. I HAD TO APPLY TO GET INTO IT. I AM AN ARTIST AND A SOCIAL WORKER. SOMETHING NEW HAS BEEN HAPPENING HERE. WE HAVE IN THE EMPTY WELLS FARGO PARKING LOT NOW, WE HAVE A HOMELESS ENCAMPMENT DEVELOPING. AND THERE HAS BEEN FIRES ALONG OUR BUILDING, QUITE A FEW OF THEM. WE HAVE HAD TO CALL THE POLICE AND THEY CAME WITH, YOU KNOW, FIRE TRUCK AND POLICE

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OFFICERS, REALLY NICE AND HELPED US WITH THAT. AND OUR MANAGERS ALSO HAD TO PUT TWO OUT HIMSELF. AND WE HAVE ONE OF OUR PEOPLE -- WE HAVE A 26-UNIT COMPLEX AND ONE OF THE WOMEN WHO LIVES IN THE UNIT HAS LYMES DISEASE AND ALLERGIES, YOU KNOW, BIG ISSUES THEY ARE LIGHTING FIRES SHE SAID THAT ARE GOING A FOOT HIGH CLOSE TO WHERE SHE IS.

>> STAFF: YOUR TIME IS UP. PLEASE CONCLUDE YOUR COMMENTS.

>> WE NEED SOME HELP FROM THE CITY. IT'S PRIVATE PROPERTY. WE NEED THE PEOPLE PUT INTO SHELTERS AND NOT LIVING IN A PARKING LOT AND WE ALSO DON'T WANT A PUBLIC RESTROOM OUTSIDE OF OUR DOOR. I HAVE A LOT OF PRIDE IN WHERE I LIVE.

>> STAFF: OKAY. OUR NEXT SPEAKER IS A SPEAKER WITH A PHONE NUMBER ENDING IN 211. PRESS STAR 6 TO UN-MUTE. THERE YOU GO.

>> HI. GOOD EVENING. MY ASSISTANT TONIGHT SERVED ME WITH SOME PAPER. OUR GREAT BUSINESS, 51-YEAR-OLD BUSINESS SUING THE CITY OF BERKELEY FOR $180,000 AND YOU DESERVE IT. YOU ACTED VERY BAD. A CORRUPTED EMPLOYEE OF YOURS BROUGHT A FOOT IN HER MOUTH, AND -- [INDISCERNIBLE] ON THE CITY COUNCIL AS WELL. MOST OF YOU HAVE BEEN OF OUR CITY. I HAVE BEEN IN BERKELEY FOR 62 YEARS. I HAVE NEVER SEEN THE CITY IN SUCH BAD SHAPE. THE NEW MAYOR IS SOMETHING. SHE DO SOMETHING. MANY OF THE CLIENTS FOR OUR BUSINESS, THEY HAVE NOWHERE ELSE TO GO. YOU HAVE TOTALLY SHAMED OUR BEAUTIFUL CITY. I AM A RESIDENT OF BERKELEY. I HAVE SPENT IN

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14 YEARS -- [INDISCERNIBLE] TAUGHT IN BERKELEY. YOU SHAME UC BERKELEY AS A FELLOW GRADUATE FROM BERKELEY. YOU HAVE DONE HORRIBLE THINGS. LOOK AT THE CITY -- [INDISCERNIBLE] HOMELESS AND POVERTY ALL BECAUSE OF YOUR ACTION.

>> STAFF: OKAY. THE FINAL SPEAKER IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> THANK YOU, HAPPY NEW YEAR, ALTHOUGH IT'S STARTING OUT TO BE AN INCREDIBLE YEAR WITH THE FIRES AND LOS ANGELES AND A BLACK COMMUNITY BURNED DOWN TO THE GROUND. IT REALLY SAD THE TRAUMA THAT WE HAVE TO GO THROUGH BECAUSE PEOPLE DON'T PAY ATTENTION TO THE CLIMATE. BUT I JUST WANTED TO TALK ABOUT A COUPLE OF THINGS. ONE, THERE WAS A DRIVER'S LICENSE CHECKPOINT THE OTHER DAY ON ASHBY, BELOW SAN PABLO. WHAT KIND OF CRAP WAS THAT? THAT WAS VERY INTERESTING. I DON'T UNDERSTAND WHY THAT WAS NEEDED. IT SEEMED LIKE THAT WOULD BE AN OPPORTUNITY FOR, YOU KNOW, NOT BAD ACTIONS BY THE PD AND I DON'T UNDERSTAND WHY YOU NEED TO DO THAT. ALSO, IT MAKES ME WONDER IF YOU ARE GOING TO COOPERATE WITH I.C.E. EVEN THOUGH YOU ARE NOT SUPPOSED TO BECAUSE WE ARE A SANCTUARY CITY. AND YOU SHOULD BE ASHAMED, EVEN THOUGH IT WASN'T ALL OF YOU AND STILL YOU ARE THE CITY COUNCIL NOW, AND I HAVEN'T HEARD JACK ABOUT THE CEASEFIRE, AND YES, WE HAVE ONE, SAD TO SEE -- THERE IS STILL A LOT OF SUPPORT NEEDED FOR -- [INDISCERNIBLE]

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>> STAFF: THAT CONCLUDES NON-AGENDA PUBLIC COMMENTS.

>> MAYOR ISHII: THANK YOU. THANK YOU, EVERYONE, FOR YOUR COMMENTS. NEXT, IS PUBLIC COMMENT BY EMPLOYEE UNIONS, WHICH HAPPENS AT THE FIRST REGULAR MEETING OF THE MONTH. ARE THERE ANY UNIONS HERE THAT WOULD LIKE TO SPEAK? YES, I SEE SOMEONE COMING TO THE FRONT. THANK YOU. ANY OTHERS IF YOU WANT TO COME UP TO THE FRONT SO YOU CAN BE READY TO SPEAK AS WELL. THANK YOU. HI.

>> HI, EVERYONE. NICE TO SEE YOU. MY NAME IS SARAH. AND I AM THE VICE PRESIDENT OF ONE OF OUR CITY UNIONS. AND I AM HERE ON BEHALF OF OUR CHAPTER OFFICER TEAM TO EXPRESS OUR SUPPORT OF ITEM 27, REAFFIRMING BERKELEY AS A SANCTUARY CITY. THIS ITEM OFFICERS THE CITY ATTORNEY, CREATES A TASK FORCE TO HELP PROTECT AGAINST THREATS TO IMMIGRANT COMMUNITIES AND REQUESTS DEPARTMENT HEADS AND ALL STAFF OF OUR SANCTUARY STATUS. ICU 10 TO 1 HAS SUPPORTED THE EFFORT TO ESTABLISH SANCTUARY CITIES. OUR MEMBERS WERE PART OF A SUCCESSFUL LAWSUIT WHICH ULTIMATELY DETERMINED TRUMP'S THREAT TO WITHHOLD FUNDING TO SANCTUARY CITIES WAS UNCONSTITUTIONAL. THE FIGHT FOR WORKERS'S RIGHTS IS TIED TO THE FIGHT FOR IMMIGRANT'S RIGHTS, VICE VERSA. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH. THANK YOU FOR SPEAKING ON BEHALF OF YOUR UNION FOR BEING HERE THIS EVENING. ARE THERE OTHER COMMENTS FROM UNIONS? OKAY. WE ARE NOW MOVING ON TO THE CONSENT CALENDAR. I JUST WANT TO NOTE THAT ON ITEM 22, I WANTED

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TO LET FOLKS KNOW THAT WE ADDED COUNCILMEMBER KESARWANI AS OUR REPRESENTATIVE TO ACT WITH COUNCILMEMBER O'KEEFE, THE ALTERNATE. THANK YOU. AT THIS TIME, IF THERE ARE ANY COUNCILMEMBERS WHO HAVE COMMENTS ON CONSENT, PLEASE PRESS YOUR BUTTONS FOR ME. I WILL START WITH COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANKS MAYOR. A COUPLE COMMENTS ON A FEW COMMENTS. FIRST ITEM 10, JUST A COMMENT IN THE WAKE OF WHAT WE HAVE SEEN IN LOS ANGELES WITH THE WILDFIRES, WE HAVE BEEN GETTING CONSTITUENT INQUIRIES, RIGHTFULLY SO. I JUST WANT FOLKS TO KNOW THIS IS A PUBLIC SAFETY PRIORITY FOR ALL OF US AND A PRIORITY FOR THE FIRE DEPARTMENT AND A LOT OF PEOPLE WORK HAS BEEN DONE AND MUCH WORK THAT IS COMING AND YOU WILL BE SEEING THE WORKS OF THAT SPERMS? FIRE DEPARTMENTS PULLING TOGETHER IN THE NEXT FEW WEEKS. I WANT FOLKS TO KNOW EMERGENCY RESPONSE AND WILDFIRE PREPAREDNESS IS THE TOP PRIORITY, CERTAINLY FOR ME IN DISTRICT 6. I JUST WANT FOLKS TO KNOW THAT IS COMING. WE TAKE IT SERIOUSLY. I APPRECIATE ALL THE HARD WORK THAT'S ALREADY BEEN DONE, BUT WE KNOW THERE IS MUCH MORE TO DO. WE ARE READY AND YOU WILL SEE MUCH MORE OF THAT SOON. AT THE MOMENT 16, I JUST WANTED TO THANK, THIS IS ON THE BENCHMARK ANALYTICS FOR THE EARLY INTERVENTION SYSTEM. THIS WAS AN ITEM I SAW WHEN SERVING ON THE POLICE ACCOUNTABILITY BOARD. WHICH CAME OUT OF THE CITY'S FAIR AND IMPARTIAL POLICING WORK, WHICH IS GIVING THE POLICE

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DEPARTMENT MORE TOOLS TO IDENTIFY PROBLEMS AND ISSUES IN THE RANKS BEFORE THEY BECOME PROBLEMS AND I JUST APPRECIATE THE WORK THAT THE DEPARTMENT WITH THE PAB AND THE BPA HAVE DONE TOGETHER. IT'S A GOOD EXAMPLE OF COLLABORATING TO ADDRESS AN IMPORTANT TOPIC AND FIND A SOLUTION TOGETHER THAT'S GOING TO MAKE A DIFFERENCE. I THINK IT'S A VERY REASONABLE INVESTMENT TO IMPROVE THE QUALITY OF POLICING AND QUALITY OF PROFESSIONALISM OF OUR STATE DEPARTMENT WHICH IS VERY HIGH. THANK YOU FOR BRINGING THAT FORWARD. LAST IS ON ITEM 27, WHICH IS SANCTUARY CITY ITEM, I WOULD LIKE TO MOVE THAT TO THE CONSENT CALENDAR. WE HAVE A LOT OF COMMUNITY MEMBERS HERE WHO ARE EAGER TO SPEAK ON THAT. I WANT TO MAKE SURE THEY HAVE THE OPPORTUNITY EARLIER IN THE MEETING. I AM GLAD WE ARE CONSIDERING IT AT TODAY'S MEETING. IT'S THE FIRST DAY AFTER THE TRUMP ADMINISTRATION TOOK OFFICE. THEY HAVE MADE AS WE KNOW, MASS DEPORTATION THREATS AND THREATS THAT COME AFTER OUR IMMIGRANT COMMUNITIES AND I THINK IT WAS REALLY IMPORTANT FOR US AS A COUNCIL TO COME TOGETHER AND REAFFIRM HERE IN BERKELEY WE ARE PLANTING THE FLAG VERY FIRMLY THAT WE REJECT THAT AND WE STAND UP FOR ALL OF OUR NEIGHBORS HERE IN BERKELEY. WE WANTED TO MAKE SURE DAY ONE OF OUR CALENDAR 2025 THAT WE ARE PUTTING OUR FLAG FIRMLY IN THE GROUND FOR SANCTUARY. [APPLAUSE] THANK YOU. AND FOLKS CAN SEE THE ITEM. IT DOES REAFFIRM OUR SANCTUARY POLICY, WHICH IS PREVIOUSLY IN PLACE, BUT WE ALSO DID

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WANT TO EXPAND BEYOND WHAT HAD BEEN DONE BEFORE TO PLEDGE TANGIBLE SUPPORT FOR OUR COMMUNITY-BASED ORGANIZATIONS AND SENSITIVE SITES SINCE THE TRUMP ADMINISTRATION HAS NEWLY TARGETED THEM FOR ACTION. AND WE ARE WORKING WITH THE CITY ATTORNEY TO HELP US FIGURE OUT WHAT IS PRACTICAL AND WHAT KIND OF SUPPORT CAN BE PROVIDED EITHER DIRECTLY OR THROUGH OTHER COMMUNITY ORGANIZATIONS TO SUPPORT THOSE VERY IMPORTANT INSTITUTIONS. SO IT'S ABOUT WHAT WE DO AS A CITY AND IT'S ALSO ABOUT HOW WE ARE SHOWING SUPPORT FOR OUR COMMUNITY MEMBERS, SO THANK YOU, THE MAYOR, FOR BEING A COSPONSOR TO COUNCILMEMBERS TO BEING SUPPORTERS. THANK YOU TO THE CITY ATTORNEY. THANK YOU TO THE CITY MANAGER FOR BEING FULLY WITH US IN SUPPORT OF THE EFFORT IN SUPPORT OF THE SANCTUARY. THIS IS INCREDIBLY IMPORTANT AS A COMMUNITY THAT WE SPEAK WITH ONE VOICE AND WE ARE GLAD IT BROUGHT FORWARD AND I ASK THAT WE MOVE IT FORWARD TO CONSENT TO ALLOW PEOPLE TO MAKE COMMENT.

>> MAYOR ISHII: THANK YOU. IS THERE ANY OPPOSITION MOVING ITEM 27 TO CONSENT? SEEING NONE, WE WILL MOVE IT TO CONSENT. THANKS SO MUCH, COUNCILMEMBER. NEXT IS COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU SO MUCH. THANK YOU COUNCILMEMBER BLACKABY FOR WRITING THIS ITEM FOR OUR SANCTUARY CITY. I WOULD LIKE TO SEE IF THERE IS ANY OPPOSITION TO ALWAYS SENDING ITEMS 26 AND 28 TO THE CONSENT CALENDAR AS WELL? 26 AND 28? OKAY.

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>> MAYOR ISHII: FREIGHT. NO OBJECTION? THOSE WILL ALSO MOVE TO CONSENT THEN. THANK YOU SO MUCH. [INAUDIBLE]. SORRY. I AM SO SORRY, BUT YOU HAD AN OPPORTUNITY TO SPEAK ALREADY. I APOLOGIZE BUT THANK YOU. THANK YOU FOR YOUR COMMENTS AND I APOLOGIZE FOR INTERRUPTING YOU, BUT WE ARE TAKING COUNCILMEMBER COMMENTS RIGHT NOW.

>> TALKING ABOUT PEOPLE WHO DON'T HAVE HOMES.

>> MAYOR ISHII: ABSOLUTELY, YOUR COMMENT IS WELL-TAKEN. THANK YOU VERY MUCH FOR SHARING. I WANT TO MAKE SURE THAT WE GIVE OPPORTUNITIES FOR OUR COUNCILMEMBERS TO GIVE THEIR COMMENTS. THANK YOU VERY MUCH. I APPRECIATE YOU BEING HERE THIS EVENING. COUNCILMEMBER LUNAPARRA, DID YOU HAVE OTHER COMMENTS THAT YOU WANTED TO MAKE?

>> C. LUNAPARRA: YEAH, REALLY BRIEFLY. ON ITEM 21 I WANTED TO EXTEND MY CONGRATULATIONS AND EXCITEMENT TO LISA TEAGUE'S APPOINTMENT TO THE MENTAL HEALTH COMMISSION. THEY WILL LEAD WILL INTEGRITY AND CAPACITY AS I KNOW WE WILL CONTINUE TO DO THAT. FOR ITEM 28, I WANT TO THANK PUBLIC WORKS DIRECTOR DAVIS AND HIS TEAM FOR THEIR SUPPORT, IN CONSTRUCTING THIS BUDGET REFERRAL WITH GRACE AND EFFECTIVENESS. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. LET'S SEE. NEXT IS COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU SO MUCH. I WAS GOING TO MAKE SOME

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RECOMMENDATIONS THAT ALREADY WERE MADE, AND I WOULD JUST VERY BRIEFLY LIKE TO VOICE MY STRONG SUPPORT FOR ITEM 27 -- REAFFIRMING BERKELEY AS A SANCTUARY CITY. I WAS JUST TALKING TO FORMER SENATOR AND FORMER MAYOR LONI HANCOCK AND I WAS REMINDS THAT WE REALLY ARE STANDING ON THE SHOULDERS OF GIANTS HERE, OVER 50 YEARS OF HISTORY. IT WAS UNDER HER LEADERSHIP ON THE COUNCIL THAT BERKELEY BECAME THE FIRST SANCTUARY CITY IN THE NATION. YEAH. THIS IS -- I NEVER THOUGHT THAT WE WOULD HAVE TO BE AT A TIME WHEN WE HAVE TO REAFFIRM THIS AGAIN. THIS IS VERY PERSONAL TO ME AS AN IMMIGRANT WHOSE FAMILY IS HERE, BUT FOR THE ABILITY FOR ASYLUM TO BE GRANTED FOR SOME OF THEM AND I SHUDDER TO THINK THAT THERE ARE ATTACKS ON OTHERS BY THE HIGHEST ELECTED OFFICIAL IN THE NATION RIGHT NOW THROUGH WORDS AND THREATS OF ACTIONS. IT REMINDS ME OF THE QUOTE AND IT'S VERY RELEVANT TODAY NANO JUSTICE TO ONE IS AN INJURY TO ALL. AND SO ON BEHALF OF OUR DISTRICT 4 OFFICE THAT IS COMPRISED ENTIRELY OF IMMIGRANTS AND FIRST-GENERATION FOLKS, AS AN IMMIGRANT MYSELF, I SEE YOU AND I AM READY TO LOCK ARMS AND STAND SHOULDER TO SHOULDER TO DEFEND ENSURING THAT BERKELEY REMAINS A BEACON OF LIGHT, HOPE, INCLUSION AND ACCEPTANCE. NO ONE SHOULD FEEL UNSAFE HERE. AND I AM -- I DON'T KNOW IF EXCITED IS THE WORD GIVEN THE TIMES THAT WE ARE IN, BUT I AM VERY MUCH LOOKING FORWARD TO JOINING THIS COUNCIL IN WORKING TOGETHER TO

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ENSURE THAT WE REMAIN A SANCTUARY COMMUNITY FOR ALL. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU VERY MUCH, MADAM MAYOR. NOW, THAT WE MOVED VIRTUALLY EVERYTHING TO THE CONSENT CALENDAR, I WILL MAKE THE COMMENTS THAT I WAS GOING TO MAKE ON THE ACTION CALENDAR NOW. FIRST OF ALL, I WANT TO BRING A LITTLE ATTENTION TO ITEM NUMBER 7 ON THE CONSENT CALENDAR, WHICH IS THE COMMISSION OF JULIE CHANG TO DO SOME WONDERFUL WORK IN THE FORM OF A MOSAIC INSIDE THE NEW SOON TO BE THIS SUMMER, OPENED WILLARD CLUBHOUSE. I WANT TO THANK THE STAFF, THE CIVIC ARTS COMMISSION AND THE MEMBERS OF THE SELECTION PANEL FOR THEIR WORK ON THIS. AND OF COURSE, THANK THE ARTIST, JULIE CHANG, FOR ALL THE WORK SHE'S DONE AND WILL DO ON THIS MURAL. IT'S A WONDERFUL PIECE OF ART. I HAVE SEEN REPRESENTATIONS OF IT AND I AM REALLY EXCITED FOR THE CLUBHOUSE TO BE COMPLETE AND INCLUDE THIS NEW WORK OF ART IN OUR SORT OF -- IN OUR COLLECTION, OUR CITY COLLECTION OF WONDERFUL PIECES OF PUBLIC ART. IF YOU BEAR WITH ME, I WILL GO THROUGH MY NOTES HERE. MOVING TO THE ACTION CALENDAR, WHAT WAS THE ACTION CALENDAR. OF COURSE, NUMBER 27, REAFFIRMING BERKELEY AS A SANCTUARY CITY, I WANT TO THANK COUNCILMEMBER BLACKABY. I WANT TO THANK MAYOR ISHII, COUNCILMEMBER LUNAPARRA AND COUNCILMEMBER TAPLIN FOR BRINGING FORWARD THIS RECOMMENDATION FOR A RECOMMITMENT TO OUR SANCTUARY CITY STATUS. I ALSO WANT TO THANK

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JUST LISTENING TO COUNCILMEMBER TREGUB FOR HIS HEARTFELT COMMENTS. THEY WERE REALLY INSPIRING AND POIGNANT. IT WAS FOR ME, TO SIT HERE AND LISTEN TO THOSE, THE COMMENTS. IT'S WORTH REMEMBERING THAT THE UNITED STATES ONLY EXISTS IN ITS CURRENT FORM BECAUSE A CARAVAN OF UNDOCUMENTED MIGRANTS GOT ON A BOAT IN ENGLAND AND CAME HERE TO MAKE A NEW LIFE AND OUR COUNTRY HAS BENEFITED FROM IMMIGRATION EVER SINCE. MAYBE IT'S GLIB WITH BUT IT'S A HISTORIC FACT. ENFORCING FEDERAL IMMIGRATION LAW IS NOT AND SHOULD NOT BE THE JURISDICTION OF LOCAL POLICE. THIS ITEM REAFFIRMS THAT BASIC PRINCIPLE. THE INCOMING ADMINISTRATION HAS MADE CLEAR THAT THEY INTEND TO RUN ROUGHSHOD OVER BASIC HUMAN RIGHTS AND CONSTITUTIONAL PROTECTIONS AS THEY CONTINUE TO DEPORT UNDOCUMENTED IMMIGRANT. ALL OF US HAVE A SOLEMN DUTY TO UPHOLD THE CONSTITUTION. IT IS CRITICAL THAT WE CONTINUE TO FULFILL THOSE DUTIES. SO I AM GOING TO -- I DON'T GET TO VOTE YES ON THIS PARTICULAR ITEM, BUT I WILL VOTE YES ON THE CONSENT CALENDAR THAT CONTAINS THE ITEM. WITH RESPECT TO ITEM NUMBER 28, WHICH IS CURB PARKING AND PREVENTIVE INFRASTRUCTURE UPGRADES AND ALLOCATION, HOPEFULLY, FROM THE JUNE BUDGET, TO PROVIDE THE CITY WITH ADEQUATE FUNDING TO REALLY GET STARTED AND GET A, YOU KNOW -- SORT OF GET REALLY UNDERWAY AS QUICKLY AS POSSIBLE WITH THIS CRITICAL SAFETY WORK. I WANT TO THANK COUNCILMEMBER LUNAPARRA FOR BRINGING THIS ITEM AND FOR ALSO BRINGING ME ON AS

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A COSPONSOR. IT WILL HELP FUND OUR OBLIGATION UNDER CALIFORNIA STATE LAW TO EXPAND RED CURBING AROUND OUR INTERSECTIONS AND CROSSWALKS. THIS SINGLE AND SIMPLE IMPROVEMENT WORKS TO DRAMATICALLY ENHANCE PEDESTRIAN SAFETY. IT'S BEEN PROVEN IN THE DENSE CITIES OF HOBOKEN AND NEW JERSEY CITY AND ELSEWHERE ACROSS THE COUNTRY, IT'S TRUE VISION ZERO. IN THOSE CITIES, THERE HAVE BEEN NO DEATHS OR SERIOUS INJURIES FOR THE PAST FIVE YEARS FOR THE LAST TIME I LOOKED AT STATS. PEDESTRIANS CAN SEE CARS COMING WITH RED CURBING BEFORE THEY STEP OFF THE CURB AND DRIVERS CAN SEE PEDS WITH MORE TIME TO STOP. IT'S CRITICAL FOR PUBLIC SAFETY. THE LATEST NEWS I READ, THE LARGE CITIES OF OSLO AND HELSINKI ARE DRAMATIC EXAMPLES OF HOW THIS POLICY HAS WORKED. BOTH OF THESE CITIES MANAGE TO GET TRAFFIC DEATHS PER ANNUM DOWN FROM 20 TO 30 PER YEAR, IN ONE CASE TO ZERO AND IN THE OTHER CASE TO NEAR ZERO. REALLY EXCITED WE ARE TAKING THIS STEP TO ENHANCE SAFETY HERE IN BERKELEY. I AM GRATEFUL FOR COUNCILMEMBER LUNAPARRA'S WORK ON THIS AND TO STAFF WHO WILL HELP IMPLEMENT IT. THANKS A LOT.

>> MAYOR ISHII: THANK YOU SO MUCH. WE ARE NEW MOVING ON TO COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU VERY MUCH. I WISH TO THANK MY COLLEAGUES FOR THEIR LEADERSHIP ON ITEMS 26, 27 AND 28. AND I WOULD LIKE TO DISCUSS ITEM 22 AND WISH TO MOVE IT TO ACTION.

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>> MAYOR ISHII: ARE THERE TWO OTHER COUNCILMEMBERS?

>> YES, I WOULD LIKE TO DO THAT AS WELL.

>> MAYOR ISHII: AND COUNCILMEMBER BLACKABY? OKAY. THAT ITEM WILL MOVE TO ACTION. ALRIGHT. OTHER COMMENTS?

>> T. TAPLIN: NO, THAT'S ALL. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. HAP NEW YEAR TO EVERYBODY. I WANT TO THANK COUNCILMEMBER BLACKABY FOR YOUR LEADERSHIP ON REITERATING OUR COMMITMENT TO BEING A CITY OF REFUGE AND SANCTUARY. I WANT TO ACKNOWLEDGE THE FEAR AND PAIN THAT MANY ARE FEELING RIGHT NOW AND I KNOW COUNCILMEMBER TREGUB IS AN IMMIGRANT. I AM THE DAUGHTER OF IMMIGRANTS. WE ARE A NATION OF IMMIGRANTS. THIS RESOLUTION I HOPE REITERATES OUR COMMITMENT TO OUR IMMIGRANT COMMUNITY HERE IN BERKELEY. I WANT TO THANKER COUNCILMEMBER LUNAPARRA. ON MY ITEM, I WANT TO CLASSIFY WE ARE MOVING THE SUPPLEMENTAL 2 TO CONSENT. IT CLASSIFIES THE PURPOSE OF THE REFERRAL AND ALSO MAKES CLEAR THE DIRECTION THAT COUNCIL HAS PROVIDED ON THE MIDDLE HOUSING ORDINANCE HAS PAUSED ANY CONSIDERATION FOR THE HILLSIDE OVERLAY ZONE UNTIL WE RECEIVE THE RESULTS OF OUR EVACUATION STUDY. WHAT WE ARE MOVING FORWARD ON IS A PLAN FOR AREAS OF OUR CITY OUTSIDE OF THAT HILLSIDE ZONE THAT IS PRONE TO FIRE RISK. THANK YOU TO MY COSPONSORS ON THAT ITEM. COUNCILMEMBERS HUMBERT, BARTLETT AND

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LUNAPARRA AND THAT'S ALL I HAVE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANKS SO MUCH FOR OUR COMMENTS. I HAD SEEN COUNCILMEMBER O'KEEFE'S LIGHT UP. DID YOU WANT TO SPEAK STILL?

>> S. O'KEEFE: I DID. I WANTED TO THANK COUNCILMEMBER BLACKABY, AND COUNCILMEMBERS LUNAPARRA AND TAPLIN FOR BRINGING THE REAFFIRMATION ITEM FOR US TONIGHT. I FEEL STRONGLY ABOUT IT. EVEN THOUGH IT DOESN'T REPRESENT A CHANGE IN LAW OR POLICY, I THINK PUBLICLY REAFFIRMING THIS POLICY IS A REALLY ESSENTIAL ACTION TO TAKE DURING THIS VERY FRAUGHT WEEK. THE POLICY IS STRAIGHTFORWARDLY GOOD PUBLIC POLICY. I THINK THAT'S UNCONTROVERSIAL, BUT THE POWER OF IT ACTUALLY LIES IN NOT JUST HAVING THE POLICY, BUT IN THE PUBLIC AWARENESS OF IT AND PUBLIC TRUST OF OUR POLICY. I THINK THAT'S WHY IT'S SO IMPORTANT TO REAFFIRM IT PUBLICLY TODAY. I WANT TO TAKE THIS OPPORTUNITY TO SPEAK DIRECTLY TO OUR NEIGHBORS WHO LACK DOCUMENTS AND THEIR LOVED ONES -- IF YOU FEEL UNSAFE AND YOU NEED THE ASSISTANCE OF THE POLICE, PLEASE CALL THEM. BLOWS KEEP YOURSELF SAFE. IF YOU HAVE CHILDREN, PLEASE SEND THEM TO SCHOOL. PLEASE CONTINUE TO PARTICIPATE IN CIVIC LIFE AS YOU HAD BEFORE. YOU ARE OUR NEIGHBORS. YOU ARE A PART OF US. PLEASE, WE WELCOME YOU AND WE WILL PROTECT YOU. I REALLY WANT THAT KNOWN AND HEARD CLEARLY. PLEASE -- YEAH, PLEASE JUST BELIEVE US WHEN WE SAY WE ARE HERE TO SERVE YOU. I THINK WE SHOULD REAFFIRM THIS POLICY AT EVERY

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MEETING, HONESTLY. MAYBE WE CAN ADD IT TO OUR LAND ACKNOWLEDGMENT OR SOMETHING. I REALLY, JUST PLEASE SPREAD THE WORD. EVERYBODY SHOULD KNOW WE WELCOME YOU. YOU ARE A PART OF US. THANK YOU VERY MUCH. THANKS AGAIN FOR BRINGING THIS ITEM.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH. COUNCILMEMBER BLACKABY, DID YOU HAVE ANOTHER COMMENT.

>> B. BLACKABY: JUST REAL QUICK AND COUNCILMEMBER -- ON ITEM 26 ON THE HOMEOWNERSHIP PROPOSAL, JUST CONFIRMING AGAIN, THIS DOESN'T CHANGE ANY OF THE -- I KNOW THE PLANNING DIRECTOR IS GOING BACK AND REWORKING THE PROPOSAL WEEKEND BUT IN TERMS OF NEW MIDDLE HOUSING IN THE HIGH FIRE ZONES, THIS DOESN'T CHANGE THAT EXCLUSION. I WANTED TO CONFIRM THAT AND MAKE THAT VERY CLEAR TO FOLKS. THAT'S IN CONSIDERATION THAT'S PART OF THIS, RIGHT, COUNCILMEMBER?

>> YES, IF THAT'S A QUESTION, YES. NOT MAKING ANY CHANGE TO THE COUNCIL DIRECTION, WHICH WAS VERY CLEAR ON THE PAUSE FOR THE HILLSIDE OVERLAY ZONE WHICH IS WHERE WE HAVE OUR FIRE ZONES 2 AND 3.

>> B. BLACKABY: YEAH. I AM HAPPY TO SUPPORT IT, BUT THAT EXCLUSION IS IMPORTANT FOR US.

>> MAYOR ISHII: THANK YOU. I THINK IT'S IMPORTANT THAT WE MAKE IT CLEAR TO THE PUBLIC WHAT WE ARE DOING. I KNOW IT CAN BE VERY CONFUSING AND OUR AGENDAS ARE VERY LONG, SO THANK YOU ALL. I

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WANT TO MAKE COMMENTS MYSELF ABOUT THE SANCTUARY CITY ITEM. THANKS SO MUCH TO COUNCILMEMBER BLACKABY AND COUNCILMEMBERS LUNAPARRA AND TAPLIN FOR COSPONSORING. I HAVE JOINED THEM AS A COSPONSOR AS WELL. I WANT TO SAY AS MAYOR, I THINK IT'S REALLY IMPORTANT FOR ME TO SAY THAT WE AS BERKELEY REAFFIRM OUR STATUS AS A SANCTUARY CITY GIVEN THE NEW PRESIDENTIAL ADMINISTRATION AND THE CURRENT POLITICAL CLIMATE. THERE ARE SOME CITIES OUT THERE THAT ARE ACTIVELY ASSISTING I.C.E. AND WE ARE TAKING THE STANCE TO REAFFIRM THAT WE WILL NOT BE DOING THAT. I THINK THAT'S SO IMPORTANT TO BE ABLE TO SAY AND I FEEL VERY LUCKY TO BE IN A CITY WHERE THIS IS NOT A CONTROVERSIAL ISSUE. [APPLAUSE] THANK YOU. I MENTIONED OUTSIDE EARLIER THAT I HAVE JUST BEEN AT THE U.S. CONFERENCE OF MAYORS IN D.C. AND I SPOKE WITH OTHER CITIES WHO ARE NOT ABLE TO DO THIS. I FEEL VERY GRATEFUL TO MY COLLEAGUES THAT WE ARE ALL UNITED HERE IN THIS. WE MUST STAY VIGILANT TO NEW AND ONGOING THREATS TO OUR COMMUNITY MEMBERS. THIS IS A VERY HARD TIME FOR MANY FOLKS. AS A JAPANESE AMERICAN MY FAMILY WAS WRONGLY INCARCERATED DURING WORLD WAR II JUST BECAUSE OF OUR IDENTITY. I UNDERSTAND THE GOVERNMENT MAKES THESE DECISIONS AND IT'S IMPORTANT FOR US AS A LOCAL LEVEL TO STAND UP AND SAY THAT'S NOT RIGHT. I FEEL IT'S MY RESPONSIBILITY TO ENSURE OUR RESIDENTS THAT WE THEY ARE SAFE HERE. WE NEED TO REFORM A PATH TO CITIZENSHIP. UNTIL THAT TIME, I ASK THAT ALL

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BERKELEY SCHOOLS, BUSINESSES, PLACES OF WORSHIP, ALL PLACES STAND UNITED AND JOIN THE COUNCIL AND REAFFIRM OUR COMMITMENT OF PROTECTING ONE ANOTHER SO THAT BERKELEY CAN TRULY BECOME A PLACE WHERE WE CAN ALL LIVE AND THRIVE. THANK YOU ALL FOR BEING HERE TODAY. I KNOW THAT MANY OF YOU ARE HERE TO SPEAK IN SUPPORT OF THAT, AND I DO WANT TO GIVE YOU THAT TIME, SO THANK YOU. OKAY. SO I WOULD LIKE TO CLOSE COUNCIL COMMENTS AND OPEN PUBLIC COMMENTS ON CONSENT CALENDAR AND INFORMATION ITEMS ONLY. WE HAVE MOVED ACTION ITEMS OVER. HEAD UP WHENEVER YOU ARE READY. THANK YOU.

>> I AM CONCEDING MY MINUTE.

>> I AM LISA WITH EAST BAY SANCTUARY COVENANT. AND WE STRONGLY SUPPORT THE RESOLUTION REAFFIRMING BERKELEY AS A SANCTUARY CITY. THIS RESOLUTION OF LINES WITH THE MISSION AND VALUES AND WE ARE PROUD TO PROTECT OUR NEIGHBORS FROM THEM INTIMIDATION AND ATTACKS FROM AUTHORITIES. WE SUPPORT LOW INCOME IMMIGRANTS AND PEOPLE FLEEING VIOLENCE AND PERSECUTION. WE REACH OVER 12,000 PEOPLE OVER YEAR AND HELP THEM ON THEIR PATH TO CITIZENSHIP AND INTEGRATION. AS MANY OF YOU KNOW THE SANCTUARY MOVEMENT WERE FOUNDED IN 1982 BY FAITH CONGREGATIONS. SANCTUARY SUPPORTERS RISKED ARREST AND IMPRISONMENT BY PUBLIC DECLARING AND ACTING ON THEIR COMMITMENT TO PROVIDE SANCTUARY TO THE 60,000 SALVADORIANS FLEEING PERSECUTION OVER THEIR OWN GOVERNMENTS. WE HAVE EVOLVED

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OVER THE YEARS. WE WORK DIRECTLY WITH UNDOCUMENTED IMMIGRANTS WHO COME TO THE SAN FRANCISCO DISTRICT TO SEEK SAFETY AND BARTLETT TO REBUILD THEIR LIVES. MANY PEOPLE WE SERVE HAVE EXPERIENCED ATROCIOUS VIOLENCE AND DESERVE TO BE WELCOME AND SUPPORTED AND NOT DEMONIZED AND FORCED INTO THE SHADOWS. WE WANT COMMUNITY MEMBERS TO FEEL SAFE GOING TO SCHOOL, THE HOSPITAL AND PLACES OF WORSHIP WITHOUT FEAR OF I.C.E. RAISED. ALL BERKELEY RESIDENTS HAVE THE RIGHT TO ACCESS THESE SPACES WITHOUT FEAR OF DEPORTATION AND FAMILY SEPARATION. WE APPLAUD THE BERKELEY CITY COUNCIL AND MAYOR FOR ONCE AGAIN LEADING THE WAY IN SUPPORTING IMMIGRANT MEMBERS OF OUR COMMUNITY AND WORKING TO KEEP FAMILIES TOGETHER RATHER THAN TEAR THEM APART. WE LOOK FORWARD TO PARTNERING WITH THE SANCTUARY TASK FORCE TO CREATE AN ORDINANCE. NOW IS NOT THE TIME TO BE SILENT. TRUMP'S DEPORTATION AGENDA AFFECTS ALL OF US AND THE COUNCIL AND THE SAFETY AND PROSPERITY OF OUR COMMUNITIES.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU FOR ENSURING THAT COMMUNITY VOICES ARE HEARD.

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENTS. I JUST WANT TO WARN YOU ALL, I AM A STICKLER FOR TIME, SO I APOLOGIZE. I WILL BE VERY CONSISTENT SO THAT WAY EVERYONE GETS THE SAME AMOUNT OF TIME. I WANT TRYING TO BE FAIR HERE. THANK YOU SO MUCH. I AM LOOKING FORWARD TO YOUR COMMENTS, THOUGH. GO AHEAD.

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YOU HAVE ONE MINUTE TO SPEAK.

>> OH, MY GOODNESS. OKAY. Hello, EVERYBODY, HONORABLE MAYOR, AND COUNCILMEMBERS.

>> MAYOR ISHII: DO YOU WANT TO MOVE THE MIC A LITTLE CLOSER?

>> I AM THE CHAIR OF THE BERKELEY PEACE AND JUSTICE COMMISSION. I AM GOING TO READ A LETTER OF SUPPORT PASSED UNANIMOUSLY BY OUR COMMISSION AND SENT TO YOU. THE PEACE AND JUSTICE COMMISSION ADVISES THE CITY COUNCIL ON ALL MATTERS RELATING TO THE CITY OF BERKELEY'S ROLE IN ISSUES OF PEACE AND SOCIAL JUSTICE. WE WRITE TO URGE THE PASSAGE OF THE 225 -- THE 2025 RESOLUTION REAFFIRMING BERKELEY AS A SANCTUARY CITY. WE THANK THE AUTHOR, COUNCILMEMBER BLACKABY AND THE COSPONSORS, MAYOR ISHII, COUNCILMEMBER LUNAPARRA AND COUNCILMEMBER TAPLIN FOR BRINGING THIS RESOLUTION TO PROTECT THE RIGHTS OF THE OVER 21% OF BERKELEY RESIDENTS WHO ARE IMMIGRANTS IN THE CITY AND THE PUBLIC SAFETY OF ALL RESIDENTS.

>> MAYOR ISHII: I AM SO SORRY, GRACE. IF YOU COULD MAKE SURE, WE WILL MAKE SURE THAT WE RECEIVE YOUR LETTER AS WELL. GREAT. YOU HAVE ANOTHER MINUTE.

>> I WILL TRUNCATE THE LETTER BECAUSE THERE ARE THREE POINTS WE WANT TO MAKE. POINT ONE IS THAT WE URGE THE COUNCIL TO GO ONE STEP FURTHER AND BEGIN THE PROCESS OF CODIFYING THIS RESOLUTION AND THE PAST SANCTUARY ACT RESOLUTIONS INTO CITY ORDINANCE.

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GIVEN THE URGENCY OF THE SITUATION, WHICH I ALL HEARD YOU TALK ABOUT, OUR RECOMMENDATION IS THAT THE TASK FORCE TAKE ACTIONS TOWARDS ORDINANCE RECOMMENDATIONS IN THE FIRST 100 DAYS OF THE NEW TERM ADMINISTRATION. WE ALSO URGE THIS COUNCIL TO ALLOCATE FUNDS TO THE SUPPORT OF COMMUNITY-BASED ORGANIZATIONS. AND FINALLY, WE ASK THE COMMISSION TO AMEND THE RESOLUTION TO INCLUDE A CALL FOR THE REPEAL OF THE ENEMY ALIENS ACT OF 1798, WHICH PRESIDENT TRUMP THREATENS TO INVOKE IN HIS PROMISE TO DETAIN AND DEPORT MILLIONS OF NON-CITIZENS. WOW. THANK YOU.

>> MAYOR ISHII: THANK YOU. I APPRECIATE IT. AND OUR NEXT SPEAKER. THANK YOU.

>> ON ITEM 10, I RECALL THESE DISCUSSIONS DURING THE PANDEMIC AND I HOPE WE ARE CONSULTING WITH OTHER JURISDICTIONS TO FIND OUT WHAT THE DELAYS ARE IN TERMS OF REIMBURSEMENT TO THE CITY. ON ITEM 28, ONLY DISTRICTS 1, 2 AND 4, I BELIEVE HAVE HAD THE COMMUNITY FORUMS THAT COUNCIL TALKED ABOUT. MOVING TO ITEM 27, WE ABSOLUTELY NEED TO IDENTIFY THE CBOS AND OTHERS IN THE COMMUNITY WHO HAVE TRUSTING RELATIONSHIPS WITH UNDOCUMENTED IMMIGRANTS. THE WOMEN'S DAY TANK DROP AND CENTER, FOR EXAMPLE, SERVES UNDOCUMENTED IMMIGRANTS REGULARLY. I WANT TO MAKE SURE THEY ARE IN THE LOOP AND OTHERS ARE INVOLVED IN THESE DECISIONS BECAUSE WE WANT THIS TO BE MORE THAN THEORETICAL. WE WANT THIS TO BE PRAGMATIC. I AM GLAD TO HEAR ONE OF THE LEGAL

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ORGANIZATIONS SPEAKING. I BELIEVE WE HAVE THREE LEGAL ORGANIZATIONS IN BERKELEY THAT ARE NONPROFITS THAT WE SHOULD BE ENGAGING. IT WILL BE EXTREMELY IMPORTANT TO HAVE THAT LEGAL SUPPORT.

>> MAYOR ISHII: THANK YOU. NEXT SPEAKER. COME ON UP. THANK YOU.

>> HI, MY NAME IS MICHAEL SMITH. I AM WITH THE EAST BAY SANCTUARY. I STARTED THERE IN 1985. I JUST WANT TO BRING UP A COUPLE OF INTEREST PARALLELS BETWEEN THOSE TIME AND THIS TIME. THE SANCTUARY MOVEMENT GOT REALLY ACTIVE IN 1982 BECAUSE OF THE LIES OF THE REAGAN ADMINISTRATION SAYING ALL OF THESE CENTRAL AMERICANS WERE COMING TO THE U.S. FOR ECONOMIC REASONS WHILE WE WERE SUPPORTING GENOCIDE AND MASSACRES IN CENTRAL AMERICA. THE CURRENT ADMINISTRATION ALSO TELLS MANY LIES ABOUT IMMIGRANTS, SAYS THEY ARE RAPISTS AND MURDERERS AND CRIMINALS, THIS COMING FROM A PRESIDENT WHO IS A CONVICTED FELON, HAS BEEN CONVICTED IN CIVIL COURT OF SEXUAL ASSAULT AND HAS 20-ODD SOME OTHER WOMEN ACCUSING HIM OF SEXUAL ASSAULT. IT'S IMPORTANT TO SEE THESE PARALLELS AND DECLARE SANCTUARY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, I ALSO WORK WITH EAST BAY SANCTUARY COVENANT. I HAVE LIVED IN BERKELEY FOR 10 YEARS NOW. I WANT TO REITERATE -- THEY ARE THE RESULTS OF GRASSROOTS ORGANIZATIONS AND ARE ROOTED IN DEEP FEARS FROM OUR COMMUNITIES AND THE CLIENTS THAT WE SERVE.

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AS A BERKELEY RESIDENT, I WANT MY FEEL COMMUNITY TO FEEL SAFE GOING TO SCHOOL AND TO THE HOSPITAL AND PLACES OF WORSHIP WITHOUT FEAR OF I.C.E. RAISED. WE ARE STANDING UP FOR OUR FRIENDS, OUR FAMILY MEMBERS, OUR NEIGHBORS AND OUR COLLEAGUES AND ALL RESIDENTS SHOULD BE ABLE TO TRUST IN LOCAL LAW ENFORCEMENT AND FEEL CONFIDENT THEY WON'T BE TURNED OVER TO I.C.E. OR DEPORTED IF THEY SEND THEIR KIDS TO SCHOOL OR HAVE TO GO TO THE DOCTOR. NOW, IS NOT THE TIME TO BE SILENT. TRUMP'S DEPORTATION AGENDA AFFECTS ALL OF US. WE ARE HAPPY TO SEE BERKELEY RISING UP TO THE OCCASION AND PROTECTING THE RIGHT TO SANCTUARY. THANK YOU FOR YOUR WORK ON THIS.

>> THANK YOU. THANK YOU FOR YOUR CONCISE COMMENT.

>> HELLO. MADAM MAYOR ISHII AND COUNCILMEMBERS. IT'S BEEN A LITTLE WHILE SINCE I SPOKE HERE. USUALLY I SPEAK ON OTHER MATTERS, MOSTLY RELATED TO HOUSING, BUT THIS TIME IT'S VERY POSITIVE AND I AM SO GLAD AS MAYOR ISHII JUST SAID THAT WE LIVE IN BERKELEY. I THOUGHT THERE WOULD BE AN ARGUMENT ABOUT THIS. I WAS PREPARED. I HAVE MATERIALS HERE THAT I WAS GOING TO PASS OUT, BUT I AM NOT GOING TO DO THAT. I AM JUST GOING TO THANK THE COUNCIL AND MAYOR ISHII FOR, YOU KNOW, REINFORCING THE IDEA THAT THIS IS A SANCTUARY CITY, THAT IMMIGRANTS MATTER, THAT WE ARE ALL IMMIGRANTS. AND I WAS GOING TO SAY THAT THERE ARE OTHERS HERE WHO HAVE CURATED AND EXHIBITED AT THE BERKELEY HISTORICAL

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SOCIETY ABOUT WHAT HAPPENED WHEN THINGS GO WRONG IN 1942 OVER 1,000 JAPANESE AMERICANS WERE REMOVED FROM THE CITY OF BERKELEY. WE HAVE THEM ALL ON A MAP. WE ARE GATHERING THEIR STORIES. IT WAS HORRIBLE, BUT THANK YOU, THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> HELLO. I AM SABRINA. I AM A CURRENT UC BERKELEY STUDENT. I WANTED TO CONVEY HOW STRONGLY I SUPPORT THE RESOLUTION TO REAFFIRM BERKELEY AS A SANCTUARY CITY. I HAVE A SPEECH TO GO WITH THE. MORE NOW THAN EVER ARE APPREHENSIONS NECESSARY FOR IMMIGRANTS AND THEIR FAMILIES. IMMIGRANTS ARE BEING PERSECUTED UNDERSTAND IT'S NOT ONLY AN ATTACK AGAINST THEM, BUT IT'S AN ATTACK AGAINST ALL OF US. FOR ONE, IMMIGRANTS ARE THE BACKBONE, BLOOD AND SOUL OF THIS NATION, LET ALONE OUR CITY. THEY ARE OUR NEIGHBORS. THEY ARE FARMERS. THEY ARE FOR ALL WORKERS. THEY ARE COOKS AND CARETAKERS, CLEANERS, STUDENTS, ACADEMICS, TEACHERS, ETC. IN MANY WAYS THEY DO SO MUCH MORE THAN THE HEAVY LIFTING THAN MOST NATIVE AMERICANS WOULD THINK OF DOING. THEIR PERSECUTION WOULD RESULT IN DISASTROUS EFFECTS FOR THE U.S. SOCIALLY, POLITICALLY, ECONOMICALLY, ETC. WE DEPEND ON IMMIGRANTS MORE THAN WE THINK. THE DOORS, WHICH ARE IN THE PROCESS OF OPENING WHICH THREATEN THE CITIZENSHIP AND RESIDENCY HERE THREATEN ALL OF US. THE POLITICAL CLIMATE AT THE MOMENT LED BY PRESIDENT TRUMP -- THIS IS AN OBVIOUSLY UNCONSTITUTIONAL

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INITIATIVE. IT REVEALS A MUCH MORE SINISTER REALITY -- AN ATTACK ON IMMIGRANTS WOULD OPEN THE DOOR FOR AN ATTACK ON ALL OF US. WHAT MATTERS MOST RIGHT NOW WE PROTECT THOSE BEING UNJUSTLY PERSECUTED. WE NEED PROTECTION IN SENSITIVE AREAS LIKE SCHOOLS, HOSPITALS, RELIGIOUS INSTITUTIONS AND PUBLIC TRANSPORTATION. WE NEED SB 48 AND WE NEED SANCTUARY. THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH.

>> GOOD EVENING, ACCOUNT. I AM HERE TO SPEAK IN FAVOR OF TWO ITEMS, 26 AND 28. 26 BECAUSE I OWN PROPERTY WITH TWO UNITS ON IT AND IF THIS GETS SORTED OUT, THAT IS THE KIND OF THING THAT WOULD GIVE SOMEBODY AN OPPORTUNITY TO OWN IN THE FUTURE THAT THEY WOULDN'T HAVE OTHERWISE. FOR 28, THERE IS FOR CURB DAYLIGHTING, THERE IS A LARGE VAN THAT PARKS AT THE END OF MY BLOCK ROUTINELY AND IT MAKES IT DANGEROUS FOR PEDESTRIANS AND CYCLISTS GOING BY ON MY STREET. WE CAN'T GET THIS DONE SOON ENOUGH. I WOULD MUCH RATHER HAVE CURBS PAINTED RED THAN RELY ON THE ENFORCEMENT FROM THE POLICE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. NEXT SPEAKER.

>> HOLD IT UP. HELLO, MY NAME IS NANCY. I WAS BORN IN BERKELEY AND I WENT THROUGH THE BERKELEY PUBLIC SCHOOLS. I AM THE DAUGHTER OF IMMIGRANTS WHO LIVED ON 6TH STREET AND UNIVERSITY. MY GRANDFATHER HAD A CUT FLOWER NURSERY. HE WOULD BE REALLY SURPRISED AT 4TH STREET RIGHT NOW. I AM HERE SPEAKING ON BEHALF

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OF MY FAMILY WHO WERE TAKEN TO TAN FUR RAN RACETRACK AND THE TOPAZ UTAH CONCENTRATION CAMP. I AM SPEAKING ON BEHALF OF THE SOLIDARITY IMMIGRANT RIGHTS JAPANESE-AMERICAN JUSTICE ORGANIZATION. TODAY I BROUGHT A POSTER AND IT SAYS BERKELEY WAS NOT A SANCTUARY CITY FOR MY MOM IN 1942. NEVER AGAIN IS NOW. IN 1942, MY MOTHER WAS IN L.A. SHE WAS IN ARTS SCHOOL AND SHE DECIDED TO TAKE A TRAIN UP TO BERKELEY SO THE FAMILY WOULDN'T GET SEPARATED INTO TWO DIFFERENT CAMPS. SHE HAD TO BE FINGERPRINTED. SHE IS AN AMERICAN CITIZEN AND HAD TO CARRY AN ALIEN IMMIGRANT PERMIT TO TRAVEL. WHEN I THINK THE TRAUMA OF OUR COMMUNITY 80 YEARS LATER DOWN TO ME, A THIRD GENERATION BERKELEYAN, WE DON'T WANT THAT TO HAPPEN AGAIN NOW, 80, 100 YEARS NOW CHILDREN SEPARATED FROM THEIR FAMILIES, PUT IN CAMPS, DEMONIZED ARE FEELING THE PAIN OF RACISM AND LONELINESS AND DISCRIMINATION. THANK YOU VERY MUCH, COUNCILMEMBER BLACKABY, FOR AUTHORING THIS RESOLUTION AND FOR COUNCILMEMBERS LUNAPARRA, TAPLIN AND MAYOR ISHII FOR SPONSORING THIS. NOW, IF WE HAD A SANCTUARY CITY IN 1942, IT MIGHT HAVE PROTECTED MORE THAN 1100 BERKELEY-JAPANESE-AMERICANS WHO WERE TAKEN AWAY AND NOW BIRTHRIGHT CITIZENSHIP IS UNDER ATTACK. THAT'S ALL I AM GOING TO SAY. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH FOR SHARING YOUR STORY.

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>> GOOD EVENING. MY NAME IS KAREN. I AM ADDRESSING THE CHAMBER TONIGHT IN LIPA CITY AS A FORMER PRESIDENT AND CURRENT BOARD MEMBER OF THE BERKELEY CHAPTER OF THE JAPANESE CITIZENS LEAGUE, THE OLDEST LARGEST ASIAN CIVIL RIGHTS ORGANIZATION IN THE COUNTRY. I DON'T THINK I COULD SAY ANYTHING MORE BEAUTIFUL OR MOVING THAN WHAT MY FELLOW JAPANESE-AMERICAN BERKELEYANS HAVE SAID. I WILL THANK THE COUNCIL VERY MUCH FOR THIS RESOLUTION. AS JAPANESE AMERICANS AND OUR INCARCERATION HISTORY, WE DO FEEL A SPECIAL DUTY TO STAND UP FOR DISFAVORED GROUPS AND FOR ME PERSONALLY AND MANY OF MY FRIENDS BOTH INSIDE AND OUTSIDE THE JAPANESE-AMERICAN COMMUNITY, THE IDEA OF THE ROUNDING UP OF PERSONS FROM OUR COMMUNITY TO GO TO OUR WORK AND OUR SCHOOLS AND OUR NEIGHBORHOOD AND TO SEE ONE DAY THAT SOME OF OUR PEOPLE ARE GONE IS SICKENING AND TERRIFYING AND I JUST THANK YOU SO MUCH FOR BEING STRONG AND FOR YOUR WORK. THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU.

>> HELLO. MY NAME IS BECCA. I AM AN IMMIGRATION ATTORNEY AT OASIS LEGAL SERVICES, WHICH IS BASED DOWN THE STREET HERE IN BERKELEY. OASIS IS A NONPROFIT LEGAL ORGANIZATION FOR LGBTQ COMMUNITY MEMBERS. WE REPRESENTED OVER 1500 LGBTQ+ ASYLUM SEEKERS SINCE OUR FOUNDING IN 2017. OUR CLIENTS HAVE FLED TO THE UNITED STATES AFTER ENDURING HORRIFIC VIOLENCE IN THEIR COUNTRIES OF ORIGIN BECAUSE OF THEIR SEXUAL ORIENTATION, GENDER

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IDENTITY OR HIV POSITIVE STATUS. GIVE PRIOR EXPERIENCES OF PERSECUTION, IT TAKES SUBSTANTIAL EFFORT FOR ASYLUM SEEKERS TO LEARN TO TRUST OUR INSTITUTIONS, TO SEEK HELP, MEDICAL ATTENTION, JUSTICE, OR ATTEND SCHOOL. UNFORTUNATELY, THERE ARE MORE AND MORE PLACES IN THE U.S. THAT ARE NOT SAFE FOR LGBTQ+ IMMIGRANTS, PLACES THAT SEEM PROUD TO BE UNWELCOMING AND EVEN HOSTILE. THANK YOU TO THE CITY OF BERKELEY FOR TAKING A STAND TO SUPPORT OUR COMMUNITY'S RIGHTS, SAFETY AND HUMAN DIGNITY AND PUSHING RIGHTS ON EFFORTS FOR CITY ORDINANCE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI. MY NAME IS -- [INDISCERNIBLE]. I AM A HOMEOWNER IN BERKELEY HAVING BEEN AN ALUM OF UC BERKELEY BACK IN THE '70S WHEN IT WOULDN'T HAVE BEEN CONTROVERSIAL TO PROPOSE A SANCTUARY ORDINANCE, BUT I AM REALLY GLAD THAT IT ISN'T NOW EITHER. THAT BERKELEY HASN'T CHANGED THAT MUCH, AT LEAST IN THAT REGARD. SO I WOULD LIKE TO ENCOURAGE THE COUNCIL TO CONSIDER BROADENING THE RESOLUTION A BIT BECAUSE OF THE KINDS OF THINGS THAT OUR PRESIDENT HAS STATED IN RECENT DAYS, PARTICULARLY TO REAFFIRM THAT THEIR CONSTITUTIONAL PROVISIONS THAT WE BELIEVE IN THE CONSTITUTIONAL PROVISIONS THAT ALL PEOPLE BORN IN THIS COUNTRY ARE CITIZENS, THAT ALL OF THEM WHETHER CITIZEN OR NOT HAVE LEGAL RIGHTS, CONSTITUTIONAL RIGHTS AND THAT BERKELEY -- EXCUSE ME, AND TO REPEAL THE ALIEN ENEMIES ACT. AND ALSO TO JUST REAFFIRM

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THAT BERKELEY WILL NOT FALL TO FEAR AND INTIMIDATION OF OPPRESSIVE LEADERSHIP. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MAYOR ISHII, AND COUNCILMEMBERS. MY NAME IS -- I AM THE EXECUTIVE DIRECTOR OF THE MULTI CULTURE INSTITUTE. WITH ME IS RUDY, OUR SENIOR PROGRAMS DIRECTOR. OUR ORGANIZATION HAS BEEN -- WAS FOUNDED IN BERKELEY IN 1991 AND SINCE THEN, 34 YEARS AGO, WE HAVE REMAINED TO OUR MISSION AND SERVED IMMIGRANT FAMILIES AND IMMIGRANT DAY LABORS AND WORKERS WITH INTENTION AND HUMANITY BY PROVIDING ADVANCEMENT OPPORTUNITIES AND A HOME AWAY FROM HOME. WE ARE NOT SHYING AWAY FROM THAT NOW. WE WILL NOT ALLOW A NEW ADMINISTRATION THE FEAR OF DEPORTATION OR I.C.E. RAISED OR COOL LAWS TO GET IN THE WAY OF OUR WORK. WE WILL CONTINUE TO FIGHT FOR A SAFE AND DIGNIFIED LIFE FOR ALL OF OUR IMMIGRANTS. I WANT TO THANK YOU ALL OF YOU. THANK YOU FOR STANDING UP FOR OUR COMMUNITY AND STANDING TOGETHER FOR A SAFE AND WELCOMING BERKELEY. I WANT TO THANK YOU AGAIN FOR RENEWING YOUR COMMITMENT TO DOING THE RIGHT THING AND I LOOK FORWARD TO WORKING WITH EACH ONE OF YOU. THANK YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH.

>> HI, GOOD EVENING, EVERYONE. MY NAME IS ABIGAIL. I AM WITH SOCIAL JUSTICE COLLABORATIVE, NONPROFIT BASED ON ACKNOWLEDGMENT WHO PROVIDE LEGAL SERVICES TO IMMIGRANTS WITH LOW INCOME WHO ARE

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FACING DEPORTATION. IN 2024, WE SERVED OVER 1400 FAMILIES. OVER THE LAST COUPLE OF MONTHS WE HAD A SHARP INCREASE IN INDIVIDUALS SEEKING RESOURCES, INFORMATION OR ANYTHING THAT MIGHT HELP EASE ANXIETY. WE SUPPORT THE REAFFIRMING OF BERKELEY BECOMING A SANCTUARY CITY. IT'S A STATEMENT OUR COMMUNITY WILL NOT CONTRIBUTE TO FEAR, SEPARATION AND HARM. THE CONNECTION BETWEEN OVER POLICING AND RACIAL AND ECONOMIC INEQUITIES AND THE DEPORTATION PIPELINE IS CLEAR. WE NEED EVERY SAFEGUARD POSSIBLE. BERKELEY MUST REFUSE TO BE COMPLICIT AND SO I THANK YOU FOR TAKING THIS STEP.

>> MAYOR ISHII: THANK YOU.

>> MY NAME IS DREW. I AM A PASTOR AT FIRST PRESBYTERIAN CHURCH AT BERKELEY. I WOULD LIKE TO SPEAK IN FAVOR OF THE SANCTUARY RESOLUTION. I WANT TO THANK COUNCILMEMBERS BLACKABY AND LUNAPARRA AND TAPLIN AND MAYOR ISHII FOR SPEAKING TO RENEW THE CITY'S SANCTUARY COMMITMENT IN LIGHT OF THIS CURRENT MOMENT. IT IS BEAUTIFUL TO SEE OUR COUNCIL UNITED ON THIS ISSUE. I BELIEVE WITH MY WHOLE HEART THAT THIS IS NOT ONLY THE RIGHT THING TO DO, BUT IT IS OUR MORAL IMPERATIVE. THIS IS MORE THAN A SYMBOLIC GESTURE. IT IS AN URGENT LIFE-SAVING MEASURE WITH EVERY BELOVED CHILD OF GOD WHO IS SUBJECTED TO DETENTION AND DEPORTATION, A GAPING HOLE IS TORN NOT ONLY IN THAT INDIVIDUAL, BUT IN THE FABRIC OF OUR CITY AND SOCIETY. WE INTEND TO EXERCISE OUR

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RELIGIOUS FREEDOM AND PRACTICE OUR FAITH BY WELCOMING AND PROTECTING A STRANGER. WE MAY NOT BE ABLE TO STOP ALL THE HARM OR CHANGE EVERYTHING, BUT TOGETHER WE CAN DECIDE WHO WE ARE GOING TO BE.

>> MAYOR ISHII: THANK YOU.

>> HELLO. MY NAME IS MARISSA. I AM A COMMUNITY ORGANIZER ARE THE EAST BAY SANCTUARY. I WAS GOING TO CEDE MY MINUTE, BUT I CAN USE IT NOW TO THANK YOU ALL AND TO PROVIDE TESTIMONY THAT I AM ORGANIZING KNOW YOUR RIGHTS WORKSHOPS. TWO WEEKS AGO WE HAD 150 PEOPLE, 150 ALLIES SAY WHAT CAN WE DO TO HELP OUR NEIGHBORS? LAST WEEKEND I HAD TO GIVE HUGS TO SOME OF THE PEOPLE THAT ATTENDED THE WORKSHOP WHERE WE WERE TELLING THEM ABOUT THEIR RIGHTS AND SEVERAL OF THEM JUST CRIED BECAUSE I SAW THAT THEY NEEDED A HUG, SO THAT'S THE REALITY OF WHAT WE ARE TALKING ABOUT. I WISH WE HAD MORE TESTIMONIES LIKE THAT, BUT I CAN TELL YOU THAT'S WHAT WE ARE FACING FROM THE CBOS, SO THANK YOU SO MUCH FOR YOUR EXAMPLE OF UNITY, SOLIDARITY AND YOU GUYS GIVE HOPE TO PEOPLE, SO THANK YOU SO MUCH. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING. MY NAME IS GEORGE. I AM VICE CHAIR OF THE BERKELEY PEACE AND JUSTICE COMMISSION. I AM SPEAKING ONLY FOR MYSELF. I HAVE BEEN DOING STEEPED IN IMMIGRANT RIGHTS WORK FOR DECADES AND HAVE BEEN IN THE COMMISSION FOR THE LAST 20 YEARS.

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WE HAVE BEEN FOLLOWING SANCTUARY AND PUSHING IT FORWARD. I HAVE -- I GAVE CONSULTATION ON THIS ITEM AND I AM PROUD OF IT, AND I AM HAPPY WITH EVERYTHING THAT'S IN IT, FULLY SUPPORT IT. AND I WANT TO RAISE AN ISSUE THAT I DON'T WANT TO TAKE AWAY FROM IT, BUT I JUST WANT TO POINT OUT A QUESTION AND A CHALLENGE TO THE COUNCIL AND TO STAFF -- ARE WE REALLY A SANCTUARY COMMUNITY? ARE WE REALLY A SANCTUARY COMMUNITY WHEN WE -- QUESTION WHETHER WE BELIEVE THAT HOMELESS PEOPLE ARE PEOPLE OR ARE THEY A PROBLEM? WE HAVE TO RISE ABOVE AS ABIGAIL SAID, WE HAVE TO CHALLENGE YOURSELVES ON THIS AND WE HAVE TO CREATE SANCTUARY-LIKE -- WE HAVE TO FIND A WAY TO EMBRACE ALL THE MEMBERS OF OUR COMMUNITY OR WE ARE NOT REALLY ACTUALLY DOING SANCTUARY.

>> MAYOR ISHII: THANK YOU.

>> LET'S TALK ABOUT IT.

>> MAYOR ISHII: THANK YOU.

>> CAMERON. I AM A RESIDENT OF BERKELEY. I AM REALLY GLAD TO HEAR -- TO BE HERE AND FIND THAT THIS SANCTUARY PROPOSAL IS SO UNCONTROVERSIAL THAT IT IS ABLE TO MOVE TO CONSENT.

>> MAYOR ISHII: I AM SORRY TO INTERRUPT YOU. I JUST NOTICED THE CLOCK IS NOT GOING. PLEASE CONTINUE, SORRY.

>> IT WAS, LIKE -- HOWEVER, IT IS MY OPINION THAT QUITE FRANKLY, IF NOBODY THINKS THE POLICY IS GOING TOO FAR, THEN IT'S PROBABLY

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NOT GOING FAR ENOUGH AND I WOULD LIKE TO ENCOURAGE THE COUNCIL TO TAKE THIS UNANIMOUS SUPPORT FOR THE POLICY AS A SIGNAL TO GO FURTHER TO CONTINUE DRAFTING LEGISLATION THAT WILL, YOU KNOW, PROTECT IMMIGRANTS AND, YOU KNOW, FIGHT AGAINST THESE THINGS, TO REALLY WRITE THE STUFF INTO LAW RATHER THAN JUST AFFIRMING IT AND MAKE SURE THAT THESE -- THESE SENTIMENTS ARE REALLY PUT INTO ACTION. I JUST WANTED TO ENCOURAGE THAT WE REALLY WORK HARD ON THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO. WELCOME TO OUR NEW COUNCIL, KELLY HERE. JUST A COUPLE OF THINGS. ON ITEM 26, I CONTINUALLY WORRY IN OUR PURSUIT OF HOUSING THAT WE ARE IGNORING THE IMPACTS OF COVERING LAND WITH HARDSCAPE WITHOUT THOUGHT OF IMPACT ON THE ENVIRONMENT, HABITAT, ECOSYSTEM'S BIODIVERSITY, WATER RUNOFF DURING STORMS. THESE IMPACTS RECEIVE NO ATTENTION AT THE PLANNING DEPARTMENT MEETINGS OR IN DISCUSSION AND I WOULD APPRECIATE IT IF WE PUT THE ENVIRONMENT BACK ON TOP. ON THE SANCTUARY CITY REAFFIRMATION, THANK YOU VERY MUCH. IT MAKES ME PROUD TO BE IN BERKELEY. AND I WOULD JUST LIKE TO SAY THE FASCIST PLAYBOOK NEVER CHANGES. IT'S ALWAYS ABOUT A GROUP TO HATE. AND LET'S NOT FORGET OUR YOUNG TRANS GENDERS WHO ARE SO ATTACKED. THANK YOU.

>> MAYOR ISHII: ABSOLUTELY, THANK YOU.

>> GOOD EVENING, EVERYBODY. I NEED TO ADVISE YOU THAT FOR OVER

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ABOUT 30 YEARS I SPECIALIZED IN POST CONVICTION RELIEF. AND WHAT THAT MEANT IS I VACATED THE CONVICTIONS OF IMMIGRANTS WHO -- CONVICTIONS OF IMMIGRANTS WHO HAD -- WHO WERE FACING DEPORTATION. AS A RESULT OF MY WORK, THOSE CONVICTIONS WERE VACATED. IN OTHER WORDS, THEY DID NOT EXIST. SO, BESIDES BEING A SANCTUARY CITY, WHICH I THINK IS ABSOLUTELY WONDERFUL, THERE IS LEGAL REMEDIES TO THIS SITUATION. AND I HAVEN'T BEEN PRACTICING LAW SINCE ABOUT 2006, BUT I CAN DO IT AGAIN.

>> MAYOR ISHII: THANK YOU SO MUCH FOR YOUR COMMENT.

>> OKAY.

>> MAYOR ISHII: OH -- I AM SORRY.

>> WAIT A MINUTE, I HAVE BEEN THE PRESIDENT OF TWO ENCAMPMENTS, TWO HOMELESS ENCAMPMENTS.

>> MAYOR ISHII: THANK YOU FOR SHARING. I AM TRYING TO BE REALLY STRICT SO EVERYONE GETS THE SAME AMOUNT OF TIME.

>> A HOMELESS ENCAMPMENT.

>> MAYOR ISHII: THANK YOU SO MUCH. I KNOW MY STAFF WILL BE REACHING OUT TO YOU. THANK YOU. WE HAVE ANOTHER SPEAKER IN PERSON.

>> HI, MY NAME IS OLGA. I AM SPEAKING ON MY PERSONAL CAPACITY. THANK YOU SO MUCH FOR INTRODUCING THIS LEGISLATION. I AM AN IMMIGRANT. YOU PROBABLY HEAR MY ACCENT STILL AFTER 25 YEARS. I CAME HERE IN '99 AS A 23-YEAR-OLD WHO WAS LOOKING FOR A BRIGHT

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LIFE IN THE UNITED STATES. IT TOOK ME ABOUT TEN YEARS TO GET MY GREEN CARD AND THE TERROR THAT PEOPLE ARE SHARING WITH YOU IS REAL. I DIDN'T RUN FROM THE COUNTRY THAT I WOULD FACE TERRORISTS, BUT STILL I WOKE UP MANY NIGHTS A WEEK DURING THOSE TEN YEARS HORRIFIED AND WITH HORRORS. AND WHEN I FIRST WAS STOPPED BY A POLICE OFFICER, YES, I WAS SPEEDING, I ADMIT, I WAS PLEADING WITH HIM NOT TO DEPORT ME. I AM AN EDUCATED WOMAN. I AM VERY BLESSED, AND STILL I HAD TO WORK TEN YEARS AS A VETERINARY TECHNICIAN, CLEANING AND DOING THE JOB THAT VERY FEW AMERICANS WANT TO DO, SO THANK YOU SO MUCH AND PLEASE SUPPORT THIS LEGISLATION.

>> MAYOR ISHII: THANK YOU.

>> ONE REALLY FAST. WE NEED TO TRAIN OUR POLICE BECAUSE A LOT OF PEOPLE COMING FROM COUNTRIES, THEY ARE REALLY TERRIFIED OF LAW ENFORCEMENT. THANK YOU SO MUCH.

>> MAYOR ISHII: YES, ABSOLUTELY. THANK YOU. DID WE HAVE ONLINE COMMENTS? SORRY, JUST TO BE CLEAR, I AM MODERATING THE IN-PERSON. WE DECIDED OUR CITY CLERK WOULD MODERATE THE ONLINE. APOLOGIES FOR STEPPING ON YOU EARLIER.

>> STAFF: NO PROBLEM. RIGHT NOW WE HAVE EIGHT RAISED HANDS. IF YOU WOULD LIKE TO MAKE COMMENT ON THE CONSENT CALENDAR, INCLUDING THE SANCTUARY CITY ITEM, PLEASE RAISE YOUR HAND. WE WILL START WITH THE FIRST SPEAKER. THAT'S LIZA. YOU SHOULD BE

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ABLE TO UN-MUTE. LIZA LUTZKER. WE WILL COME BACK. NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER. YOU SHOULD BE ABLE TO SPEAK.

>> SO SANCTUARY CITY, I JUST QUESTION FOR WHO. I HOPE IT'S FOR EVERYONE AND IT INCLUDES THE UNHUSBANDED COMMUNITY, OUR BROTHERS, SISTERS, OUR NEIGHBORS THAT ARE LIVING ON THE STREETS OR IN SHELTERS PART-TIME. AND I HOPE IT INCLUDES PALESTINIANS AND OTHER PEOPLE, BLACK AND BROWN AND INDIGENOUS COMMUNITIES BECAUSE IT DOESN'T SEEM LIKE YOU CARED ABOUT THEM WHEN IT CAME TO SUPPORTING A CEASEFIRE. AND I ALSO DON'T THINK IT'S A GREAT IDEA TO GIVE THE CLERK THE TIME -- THE AUTHORITY TO DECIDE WHO GETS IN OR NOT ON ZOOM BECAUSE I KNOW HE'S BEEN DISCRIMINATORY IN THE PAST, AND PRETENDS TO GIVE PEOPLE THE MUTE AND YOU KNOW UN-MUTE YOURSELF, BLAH-BLAH-BLAH, PLAY GAMES, SO PLEASE DON'T ALLOW HIM TO DO THAT AND TAKE THAT POWER BACK. YOU ARE THE MAYOR. TAKE THE POWER. BE THE MAYOR. THANK YOU.

>> MAYOR ISHII: I JUST WANT TO BRIEFLY SPEAK IN DEFENSE OF OUR CITY CLERK WHO I BELIEVE IS VERY FAIR AND WORKS VERY HARD TO CONNECT TO PEOPLE ON ZOOM AND SOMETIMES TECHNOLOGY IS VERY COMPLICATED. SO THANK YOU SO MUCH TO OUR CITY CLERK WHO HAS A VERY DIFFICULT JOB, SO I AM SORRY. PLEASE CONTINUE.

>> STAFF: THANK YOU. LET'S TRY LIZA AGAIN. LIZA YOU SHOULD BE ABLE TO UN-MUTE.

>> YEAH, HI HERE. CAN YOU HEAR ME?

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>> STAFF: YES.

>> GREAT, SORRY. HAD SOME TECHNICAL DIFFICULTIES. SO FIRST, I JUST WAND TO SPEAK FOR MYSELF, THANK YOU SO MUCH FOR YOUR SANCTUARY CITY ITEM. I COULDN'T BE MORE PROUD TO HEAR ALL OF THE COMMENTS FROM FOLKS AND THE UNANIMOUS SUPPORT. SECOND, I AM HERE ON BEHALF OF WALK BAY BERKELEY TO SUPPORT I GUESS WHAT IS NOW CONSENT ITEM 28. AND TO JUST REMIND YOU ALL THAT DAYLIGHTING IS TRULY A LIFE-SAVING TECHNOLOGY. WE NEED TO MAKE SURE THAT CARS ARE NOT PARKED ON CORNERS. 80% OF OUR PEDESTRIAN FATALITIES AND SERIOUS INJURIES HAPPEN AT INTERSECTIONS IN BERKELEY. THIS COULDN'T HAPPEN FASTER. WE REALLY NEED THE RED PAINT TO HELP REMIND PEOPLE BECAUSE CITATIONS CAN ONLY GO SO FAR AND WE REALLY, REALLY NEED PREVENTIVE INFRASTRUCTURE WHICH ACTUALLY WILL PREVENTIVE PEOPLE FROM PARKING IN THESE SPOTS. WILL ADD TO CIVIC LIFE ON THE STREETS AND IT WILL SLOW CARS DOWN. THANK YOU FOR PUSHING THIS FORWARD IN JUNE ON YOUR BUDGET.

>> STAFF: THANK YOU. OKAY. NEXT IS REN YOU SHOULD BE ABLE TO UN-MUTE.

>> GOOD EVENING, REN -- I AM SPEAKING ON MY OWN BEHALF TONIGHT. I AM SPEAKING TONIGHT IN SUPPORT OF COUNCILMEMBER LUNAPARRA'S PROPOSAL FOR DAYLIGHTING IMPLEMENTATION. FOR OVER 80% OF NEAR FATALITY INCIDENTS HAPPEN IN OUR CROSSWALKS. DAYLIGHTING ALONE COULD RESULT IN UP TO 30% REDUCTION IN PEDESTRIAN INJURIES.

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LUNAPARRA'S MEASURE IS ESSENTIAL TO ENSURING NOT ONLY CAN THE CITY REINFORCE ITS OWN LEGISLATION, BUT KEEP BERKELEY SAFE. PLEASE VOTE ON THIS ITEM TO ENSURE THAT DAYLIGHTING CAN SAVE LIVES AND ON THE SANCTUARY CITY ITEMS FOR REASONS MENTIONED BY OTHER COMMENTERS. THANK YOU.

>> STAFF: OKAY. NEXT IS SHIRLEY KIRSTEN.

>> CAN YOU HEAR ME?

>> STAFF: YES.

>> THANK YOU VERY MUCH. I WOULD LIKE TO ALSO CONGRATULATE YOU FOR THE SANCTUARY CITY RESOLUTION. I AM FOR IT, BUT I AM HERE TO TALK TO YOU ABOUT THE DAYLIGHTING LAWS, WHICH I APPROVE OF. I HAVE SENT YOU PICTURES OF BIG RIG TRUCKS OF A BUSY INTERSECTION OF HOPKINS AND MCGEE. THEY ARE CAUSING DELETERIOUS BLIND SPOTS FOR PEDESTRIANS. THEY ARE ALSO CAUSING BLIND SPOTS FOR CARS TURNING DOWN MCGEE ON TO HOPKINS. I HAVE TALKED TO SOME OF THE SHOP OWNERS WHO TRUCKS ARE CONTRACTED FOR 37, I AM TRYING AS PRIVATE CITIZEN TO GET THE ENFORCEMENT, I DON'T THINK I ALONE CAN DO THAT. I ASK YOU TO TRY TO GET THE POLICE AND FIRE DEPARTMENT AND TRANSPORTATION TO ENFORCE THE LAW, AND I REALLY APPRECIATE THAT YOU ARE SUPPORTING IT. THANK YOU VERY MUCH.

>> STAFF: THANK YOU. NEXT IS BENJAMIN FRY.

>> HI. THANK YOU TO COUNCIL AND THANK YOU FOR CONTINUING TO ALLOW ZOOM FOR JOINING THE MEETINGS FOR THOSE OF US WHO ARE NOT

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ABLE TO MAKE IT DOWN TO CITY HALL. I ALSO WANTED TO SAY THANK YOU FOR SUPPORTING THE SANCTUARY CITY ITEM AS WELL. BUT I AM CALLING IN SUPPORT AS A RESIDENT OF DISTRICT 5 OF THE ITEM 28 IN SUPPORT OF THE BUDGET REFERRAL FOR DAYLIGHTING SUPPORT. LIKE SHIRLEY MENTIONED, I WOULD -- IN ADDITION, TO ALL OF THE RED PAINTING THAT WILL BE GOING OP, I WOULD LIKE TO ENCOURAGE CITY COUNCIL TO CONTINUE TO FUND INFRASTRUCTURE IMPROVEMENTS THAT WILL ACTUALLY HELP ENSURE THAT DRIVERS ARE UNABLE TO ILLEGALLY USE DAYLIGHTING SPACES, ESPECIALLY AROUND MARKETPLACES LIKE THE AREA THAT SHE MENTIONED AT MCGEE AND HOPKINS STREETS. THOSE AREAS ALSO TEND TO HAVE FEWER BIKE PARKING SPACES AND OFTEN GET USED UP, SO PUTTING IN THINGS LIKE BIKE CORRALS WOULD BE A WONDERFUL IMPROVEMENT AND ALSO ENCOURAGE MORE SHOPPING IN THE AREA. SO THANK YOU FOR YOUR SUPPORT AND I HOPE THAT THE CITY COUNCIL WILL CONTINUE TO MOVE FORWARD ON SAFER STREETS.

I -- YEAH.

>> STAFF: OKAY. NEXT IS JANIS.

>> THANK YOU, MADAM MAYOR AND ACCOUNT. I AM COMMENTING ON ITEM 26, WHICH I UNDERSTAND IS NOW ON CONSENT. I APPLAUD THE ACCOUNT'S INTENT TO GET MORE AFFORDABLE HOUSING BUILT IN OUR CITY, BUT WHAT I DON'T SEE IN ANY OF THE PROPOSALS REGARDING MIDDLE HOUSING IS ANY GUARDRAILS BEING PUT IN PLACE TO REQUIRE CERTAIN INCOME LEVELS OR CERTAIN HOUSING PRICES. EVERYTHING IS

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ALWAYS BEING LEFT TO MARKET RATE AND I JUST WANT TO CAUTION YOU ABOUT WHAT YOU ARE AGREEING TO GIVE UP IN RETURN FOR A HOPE OF MORE AFFORDABLE HOUSING. AND I REALLY LIKE TO SEE MORE SAFEGUARDS BEING PUT INTO PLACE BECAUSE I DO WORRY ABOUT LOSING ALL OF OUR OPEN SPACE AND ALL OF OUR FAMILY STYLE HOUSING IN OUR CITY. THANK YOU.

>> STAFF: THANK YOU. NEXT IS VIRGINIA BROWNING.

>> OKAY. YOU CAN HEAR ME.

>> STAFF: YES.

>> I WOULD LIKE TO SPEAK ON ITEM 26 ALSO. I AGREE WITH JANIS AND WITH WHAT KELLY HAD SAID. THE THEORY OF THIS MIDDLE HOUSING, AND I KNOW YOU ARE NOW CALLING IT MIDDLE INCOME HERE, IT IGNORES THE PRICE OF LAND. IN HEDGE FUNDS AND HUGE DEVELOPERS HAVE DRIVEN UP THE PRICE OF LAND BY THIS SUBDIVIDING. EVEN WHEN YOU HAD A CITY COUNCIL PERSON ON HERE WHO, HE ADMITTED THAT THIS WAS NOT GOING TO MAKE THINGS MORE AFFORDABLE, THE MIDDLE HOUSING IN APRIL OF 2024, LAURIE CAPITELLI ADMITTED IT WAS NOT GOING TO MAKE IT MORE AFFORDABLE. IT WAS ABOUT INCREASING THE NUMBER OF UNITS THAT WOULD BE MARKET RATE, EXPENSIVE. I DON'T KNOW HOW MANY ARE SINCERE OR JUST CAVING INTO THE WEALTHMONGERS THAT ARE DRIVING THIS, BUT I REALLY WISH AS JANIS SAID, THAT YOU WOULD TRY AND PUT GUARDRAILS ON THIS. THANK YOU.

>> STAFF: NEXT IS WENDY. YOU SHOULD BE ABLE TO UN-MUTE.

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>> YES, THANK YOU VERY MUCH. ACTUALLY, I AM SORRY. I NEED TO RENAME MYSELF, BUT MY NAME IS MARILYN. I AM A MEMBER OF THE BERKELEY FRIENDS MEETING, AND THE CLERK OF OUR ACCOMPANIMENT TEAM. AND I AM HERE TO SPEAK ON ITEM 26, ON THE SANCTUARY CITY MOTION, AND I WANT TO THANK CITY COUNCIL FOR CONSIDERING THIS AND STRONGLY URGE YOU TO PLEASE APPROVE IT. IT IS REALLY IMPORTANT THAT WE SUPPORT EVERY MEMBER OF OUR COMMUNITY AND AS A GROUP THAT HAS WORKED WITH A NUMBER OF FOLKS WHO ARE NEWLY ARRIVED IN THIS AREA, AND ARE SEEKING A WAY TO MAKE A LIFE FOR THEMSELVES AND TO ALSO BE OF SERVICE TO WHAT WILL HOPEFULLY, BE THEIR NEW COUNTRY, I AM HOPEFUL THAT WE CAN ALL JOIN TOGETHER IN SUPPORTING EVERY RESIDENT OF THIS CITY, INCLUDING THOSE WHO ARE FROM OTHER PLACES. SO THANK YOU VERY MUCH.

>> STAFF: THANK YOU.

>> MAYOR ISHII: JUST TO SET EXPECTATIONS, WE HAVE A FEW MORE COMMENTS ON ZOOM. I WILL TAKE A VOTE, BUT I WANT TO GIVE COUNCIL A BREAK BECAUSE WE HAVE BEEN SITTING HERE FOR A COUPLE OF HOURS AND WANT TO MODEL GOOD HEALTH AND WELLNESS OUTCOMES.

>> STAFF: JUST THREE MORE SPEAKERS ON ZOOM. NEXT THE LAST NAME IS [INDISCERNIBLE] FIRST NAME IS ASN. YOU SHOULD BE ABLE TO UN-MUTE.

>> HI. MY NAME IS ASN. I AM THE EXECUTIVE DIRECTOR OF THE NORTHERN CALIFORNIA LAND TRUST. I AM CALLING SPEAKING IN SUPPORT

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OF ITEM 12, WHICH INCLUDES FUNDS TO SUPPORT THE REHABILITATION OF 2201 HAY STREET. I WANT TO THANK THE CITY OF BERKELEY CITY COUNCIL FOR YOUR CONTINUED SUPPORT FOR THE PROJECT ON HAY STREET AND OTHER COMMUNITY PROJECTS THROUGHOUT THE CITY RESPOND I WANT TO SPEAK IN SUPPORT OF YOUR RESOLUTION ON SANCTUARY CITIES. THANK YOU SO MUCH.

>> STAFF: THANK YOU. NEXT IS RICHARD. YOU SHOULD BE ABLE TO UN-MUTE.

>> THANK YOU. LOOK, I AM A HOUSING PERSON. AS COUNCILMEMBER TREGUB KNOWS, I AM A HOUSING PERSON. I SUPPORT HOUSING, BUT I AM SURPRISED THAT 26 WAS MOVED TO NON-CONSENT. I HAVE SEEN A LOT OF COMMENTS COMING IN FROM PEOPLE, WRITTEN COMMENTS ON THIS ITEM, I THINK IT NEEDS A LOT MORE CONSIDERATION BEFORE YOU MOVE FORWARD. THERE HAS BEEN NO ANALYSIS OF WHO BENEFITS FROM THIS HOUSING. NO ANALYSIS BY THE CITY STAFF OF WHO IS GOING TO -- IF THERE IS GOING TO BE ANY LOW-INCOME HOUSING CREATED OR WHAT LEVEL OF INCOME PEOPLE ARE GOING TO BE ELIGIBLE FOR THIS HOUSING. THAT'S ONE. TWO, IS THE FIRE RISK. WHILE YOU HAVE EXEMPTED THE HILLS FOR NOW, THE 1991 FIRE CAUSED EVACUATIONS ALL THE WAY DOWN TO COLLEGE. AND IF THE WINDS HAD NOT CHANGED, HALF OF BERKELEY WOULD HAVE BURNED. THAT MEANS EVACUATION PLANS ARE IMPORTANT FOR THE REST OF THE CITY ALSO AND CONCERN OVER DENSITY, AND MORE DENSITY IN THE REST OF THE CITY IS ALSO A CONCERN. I WOULD ASK

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THAT YOU PAY MORE ATTENTION TO THIS WHEN THE ITEM COMES BACK. THANK YOU.

>> STAFF: THANK YOU. LAST SPEAKER IS PHONE NUMBER ENDING IN 816.

>> I WANT TO REMIND YOU THE DENIALS BY TRUMP ABOUT COVID COST OVER 1.3 MILLION AMERICANS. MOST OTHER COUNTRIES ONLY HAD 20,000. THE SAD FACT IS THAT THIS COUNTRY IS BUILT BY IMMIGRANTS AND RIGHT NOW, WE HAVE THIS MAN COMING BACK, NOTHING GOOD IS GOING TO COME FROM HIM AT ALL. IMMIGRANTS -- HE THE COVID, MODERNA CEO, ADVISER WAS GREEK. BOTH ARE IMMIGRANTS. SAD THE STATE OF THE COUNTRY, STATE OF THE CITY TO HAVE HIM BACK IN POWER. OUR BUSINESS, WE HAD HUNDREDS OF PEOPLE OVER THE LAST 50 YEARS CONTRIBUTED MILLIONS OF DOLLARS TO THE FEDERAL GOVERNMENT, TO THE STATE, TO THE CITY. ONE AND DO YOUR JOB AS GOOD AMERICANS SHOULD BE. DISTANCE YOURSELVES FROM THE UGLY PICTURE THAT TRUMP BRINGS TO IT. THIS MAN IS SYMPTOMS OF DISEASE AND FASCISM. THANK YOU AND HAVE A GOOD NIGHT.

>> STAFF: THANK YOU.

>> MAYOR ISHII: THANK YOU ALL SO MUCH FOR YOUR COMMENTS. IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR WITH THE CHANGES THAT WE HAVE MADE? ACTUALLY, DO YOU WANT TO REBACK THE CHANGES THAT WE HAVE MADE?

>> STAFF: YES, THE CONSENT CALENDAR IS AS PUBLISHED -- ITEMS 1 THROUGH 21 ARE REMAINING ON CONSENT. ITEM 22 REGARDING THE CITY

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COUNCIL APPOINTMENTS HAS BEEN MOVED TO ACTION. AND THEN ITEM 26, EXPANDING HOME OWNERSHIP OPPORTUNITIES, ITEM 27, REAFFIRMING BERKELEY AS A SANCTUARY CITY AND ITEM 28, BUDGET REFERRAL TO CURB MARKING, THOSE THREE HAVE BEEN MOVED TO CONSENT.

>> MAYOR ISHII: OKAY. AND I THINK COUNCILMEMBER TAPLIN HAS SOME COMMENTS.

>> T. TAPLIN: THANK YOU VERY MUCH. I WANT TO THANK EVERYONE WHO SPOKE TONIGHT AND I WANT TO THANK FOR THE COMMENTS IN SUPPORT OF TRANS YOUTH. I WANTED TO SAY QUICKLY WINNINGS I APPRECIATE THE ADVOCACY FOR AFFORDABLE SPACE AND AFFORDABLE HOUSING AND FIRE SAFETY. IT IS NOT CLEAR TO ME HOW INCREASING HOMEOWNERSHIP OPPORTUNITIES FOR A WIDER RANGE OF FAMILIES IS A THREAT TO ANY OF THOSE THINGS. THANK YOU.

>> MAYOR ISHII: COUNCILMEMBER TREGUB.

>> I. TREGUB: MOTION TO APPROVE THE CONSENT CALENDAR.

>> SECOND.

>> MAYOR ISHII: UNLESS THERE IS ANY OBJECTIONS FROM ANY COUNCILMEMBERS, WE CAN BE RECORDED AS AYE. GREAT. THANK YOU SO MUCH.

>> STAFF: CONSENT CALENDAR IS PASSED.

>> MAYOR ISHII: THANK YOU. SO, THANK YOU. THANK YOU ALL SO MUCH FOR BEING HERE. I AM SUPER PROUD OF OUR COUNCILMEMBERS. WE STILL HAVE THE ACTION CALENDAR. THERE IS ONE THING, BUT WE ARE GOING

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TO TAKE A FIVE-TEN MINUTE BREAK.

>> STAFF: TEN.

>> MAYOR ISHII: LET'S GIVE A TEN-MINUTE BREAK BECAUSE I THINK IT'S HEALTHY TO STAND UP AND STRETCH. IT'S BEEN TWO HOURS. THANK YOU ALL FOR BEING HERE.

>> RECORDING STOPPED. BERKELEY CITY COUNCIL JANUARY 21, 2025, 8:00 P.M. [BREAK] [PLEASE STAND BY...]

>> MAYOR ISHII: I'M CALLING BACK THE COUNCILMEMBERS. OUR BREAK IS OVER. THANK YOU FOR THOSE WHO ARE STILL WITH US.

>> CITY CLERK: OKAY, LET ME START THE RECORDING. AND WHOSE -- WE HAVE A NEW... LET ME GET THE CAPTIONER GOING REAL QUICK.

>> MAYOR ISHII: SURE, THANK YOU. PLEASE STAND BY... CAPTION TEST

>> CAPTIONER-JENELLE: ALL GOOD!

>> CITY CLERK: THANK YOU VERY MUCH. WE CAN SEE THE TEXT. [RECORDING STOPPED]

>> CITY CLERK: THERE WE GO. WE'RE READY. THAT'S NOT RIGHT. [RECORDING IN PROGRESS]

>> MAYOR ISHII: THERE WE GO. I WOULD LIKE TO CALL THIS MEETING BACK TO SESSION. GLAD WE WERE ABLE TO TAKE A LITTLE BREAK BEFORE WE MOVE ON TO THE ACTION CALENDAR. SO, LET'S SEE. FIRST ITEM ON THE ACTION CALENDAR IS A PUBLIC HEARING. AND I WOULD LIKE TO PASS IT OVER TO OUR CITY MANAGER, IF YOU WOULD LIKE TO INTRODUCE THE ITEM.

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>> #23?

>> MAYOR ISHII: SORRY, ON ITEM #23. CALIFORNIA MUNICIPAL FINANCE AUTHORITY BOND FINANCING FOR 2001 ASHBY AVENUE.

>> THANK YOU, MADAM MAYOR, MY APOLOGIES. THIS IS BEING LED BY OUR HEALTH HOUSING AND COMMUNITY SERVICES DEPARTMENT. IT'S A PRETTY STRAIGHT FORWARD ITEM WE CAN TAKE THE INITIATIVE ON. WE DON'T HAVE A PRESENTATION BUT WE HAVE OUR HHCS DIRECTOR GILMAN HERE AND OUR HOUSING AND HUMAN SERVICES HERE. THEY DON'T HAVE A PRESENTATION BUT THEY ARE HERE TO ANSWER QUESTIONS.

>> MAYOR ISHII: THANK YOU VERY MUCH. AND THANK YOU FOR BEING HERE TO THE STAFF. I WOULD LIKE TO OPEN THE PUBLIC HEARING AND TAKE PUBLIC COMMENTS, IF THERE ARE ANY. OKAY, SEEING NONE. I WOULD LIKE TO TAKE COUNCIL QUESTIONS ONLY. ANY COUNCIL QUESTIONS? OKAY, I WOULD LIKE TO MAKE A MOTION TO CLOSE THE PUBLIC HEARING THEN. IS THERE A SECOND?

>> I. TREGUB: SECOND.

>> MAYOR ISHII: OKAY. TAKE A VOTE. OR I CAN JUST SAY, YEAH, AS LONG AS THERE ARE NO SORRY, OBJECTIONS. IF THERE ARE NO OBJECTIONS I WILL HAVE US ALL RECORDED AS AYES. GREAT. THEN WE ALSO NEED TO HAVE COUNCIL DELIBERATIONS. ANY DELIBERATIONS? COUNCIL DELIBERATION? NO?

>> I. TREGUB: MOTION TO APPROVE ITEM #23.

>> T. TAPLIN: SECOND.

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>> MAYOR ISHII: OKAY. UNLESS THERE ARE ANY OBJECTIONS WE CAN ALSO BE RECORDED AS AYES HERE. ALL RIGHT, THANK YOU. MOVING ONTO ITEM #24. WHICH IS THE CHANGES TO SELECT RECREATION FACILITIES AND CAMPS PROGRAM FEES. CITY MANAGER?

>> THANK YOU, MADAM MAYOR. THIS IS A FEE INCREASE FOR SOME OF OUR RECREATION FACILITIES AND CAMPS. WE HAVE A PARKS RECREATION AND WATERFRONT DIRECTOR FERRIS IS ON THE LINE, IN CASE COUNCIL HAS ANY QUESTIONS, WE DON'T HAVE A PRESENTATION TO SHARE WITH YOU TONIGHT, THOUGH.

>> MAYOR ISHII: THANK YOU SO MUCH. I WOULD LIKE TO OPEN THE PUBLIC HEARING AND TAKE ANY PUBLIC COMMENTS. OKAY, I SEE ONE HERE.

>> HI, MY NAME IS JEROME SOLBERG AND I'M A BOARD MEMBER WITH ACTORS ENSEMBLE OF BERKELEY. I'VE BEEN A BOARD MEMBER SINCE 2007. WE HAVE BEEN PRODUCING THEATER CONTINUOUSLY IN BERKELEY SINCE 1957. JOHN HINCKLE PARK SINCE 2013, USUALLY ABOUT TWO SHOWS A YEAR, NOT COUNTING COVID. LAST YEAR WE PRODUCED THE IMAGINARY ENVELOPE AND MUCH ADO ABOUT NOTHING. THIS ATTEMPTS TO FIX SOME ISSUES RELATED TO THE PREVIOUS LAW THAT, THE PREVIOUS LAW INCREASED OUR FEES BY ABOUT DOUBLE WHAT THEY WERE FROM 2023 TO 2024. MY ESTIMATE IS THIS WILL INCREASE EVEN WITH THE DISCOUNT IN IT BY ANOTHER 8%. I WANT TO JUST ASK THE COUNCIL TO, AT LEAST APPROVE THIS, BUT CONSIDER, I WILL SEND A NOTE ABOUT

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SOME OTHER DETAILS.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU SO MUCH.

>> MAYOR ISHII: OKAY, I SEE ANOTHER COMMENT.

>> UNDER THE FORMER COUNCIL I HAVE SPOKEN TO THIS ISSUE ABOUT THEIR NEED FOR A WAIVER, THE ACTORS ENSEMBLE COMPANY. I CAN'T SPEAK HIGHLY ENOUGH ABOUT THEM, THEY ARE SO DEDICATED TO THE COMMUNITY. THEY PUT ON THE JOHN HINCKLE PRODUCTIONS BUT OTHER PRODUCTIONS TOO. IN 2022 I WAS LOOKING FOR A THEATER PRODUCTION AROUND ROE SO IT WOULD BE TIMED AROUND THE DOBBS DECISION. PEOPLE SAID THIS COULDN'T BE DONE. WHEN I WENT OUT TO TRY TO DO THIS. AND I CALLED BLINDLY AND I CALLED THE ACTORS ENSEMBLE COMPANY AND I WORKED WITH THEM PRODUCING, WE CO-PRODUCED WELL WITHIN THREE MONTHS IN BERKELEY FREE, THEY PROVIDED A PUBLIC SERVICE, THE COUNCIL GENEROUSLY CONTRIBUTED TO IT. PLEASE LOOK AT THIS COMPANY CAREFULLY AND GRANT THEM A WAIVER.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENT. ANY OTHER PUBLIC COMMENTS ON THIS ITEM? ANY ON ZOOM?

>> CITY CLERK: NO HANDS RAISED ON ZOOM.

>> MAYOR ISHII: OKAY, THEN I WOULD LIKE TO TAKE COUNCIL QUESTIONS ONLY. YES, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: DIRECTOR FERRIS, VERY QUICKLY, I KNOW THIS ISN'T IN THE STAFF REPORT BUT IT WOULD BE HELPFUL TO SUMMARIZE SETTING

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FEES, PUTTING TOGETHER JURISDICTIONS, WHERE IT WAS APPROPRIATE TO INCREASE OR LEAVE THE SAME. WONDER IF YOU COULD SPEAK TO THAT PROCESS AND HOW YOU WENT THROUGH IT AND THOUGHT ABOUT IT. ESPECIALLY SINCE YOU DID IT WITHOUT A CONSULTANT REPORT, YOU DID IT WITH YOUR OWN KNOWLEDGE AND COMPARISON. IF YOU CAN HELP US UNDERSTAND THAT I WOULD REALLY APPRECIATE IT.

>> DEFINITELY, CAN YOU HEAR ME?

>> B. BLACKABY: YEP.

>> FANTASTIC. WELL, THERE WERE TWO DIFFERENT KINDS OF AREAS OF FEE INCREASES HERE. WE SAW SMALL INCREASES TO BERKELEY CAMPS, AND THE COST COMPARISONS ARE IN THE BACK OF THE STUDY, SO WE COMPARED THEM TO A VARIETY OF RESIDENT CAMPS IN THE AREA. AND ALSO TOOK INTO CONSIDERATION THAT THE CAMPS FUND WHICH IS MADE UP OF ALL THREE CAMPS PLUS CASADERO AND OUR FEE CLASSES IS A SELF-SUSTAINING FUND AND NEEDS TO BE IN THE BLACK. SO IN ORDER TO DO THAT, AS, YOU KNOW, COSTS RAISE FOR CAMP, WE HAVE TO RAISE FEES ASSOCIATED WITH IT. IT'S NOT GENERAL FUNDED. IT'S ALL SELF-SUPPORTING. BUT WE DID DO COST COMPARISONS. AND THEY ARE IN THE BACK OF THAT REPORT. FOR THE MOST PART, ESPECIALLY AT BERKELEY DAY CAMP WE ARE WAY AT THE BOTTOM OF DAY CAMP COSTS TO OUR RESIDENTS. AND THE SAME THING AT BERKELEY ECHO LAKE CAMP. TUOLUMNE WE ARE MORE IN THE MIDDLE OF FAMILY CAMPS OF COSTS. BUT KEEP IN MIND, WE GAVE AWAY, I THINK OVER $200,000 WORTH OF

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SCHOLARSHIPS TO OUR SUMMER PROGRAMS LAST YEAR. AND A LOT OF THEM WERE AT THESE THREE CAMPS. WE HAVE A LOT OF 100% SCHOLARSHIP PARTICIPANTS. SAME THING THE FEES FOR THE PICNIC SEGMENTS. WE ARE BRINGING ON A BUNCH OF PICNIC SITES. WE HAVE HAD REQUESTS FROM RESIDENTS WE MAKE A LOT MORE TABLES RESERVABLE. AND THERE'S SOME CHANGES FROM SOME OF THE FEES. CEDAR ROSE AREA, ROW PARK, STRAWBERRY CREEK BECAUSE WE ADDED AMENITIES AND THE DISCOUNT TO JOHN HINCKLE AMPHITHEATRE. WHEN WE DID ESTABLISH THAT FEE SEVERAL YEARS AGO, I THINK 3-4 YEARS AGO AT THIS POINT, WE DID DO COMPARISONS FOR AMPHITHEATERS ACROSS THE BAY AREA, SO.

>> B. BLACKABY: THANK YOU.

>> MAYOR ISHII: YEAH, THANK YOU SO MUCH. GLAD YOU TOUCHED ON THE SCHOLARSHIPS AS WELL. ARE THERE OTHER QUESTIONS FROM COUNCIL? OKAY, SEEING NONE. I WOULD LIKE TO MAKE A MOTION TO CLOSE THE PUBLIC HEARING.

>> C. LUNAPARRA: SECOND.

>> MAYOR ISHII: IF THERE ARE NO OBJECTIONS I WILL MARK US ALL AS AYES. THANK YOU. I WOULD ALSO LIKE TO MAKE A MOTION TO APPROVE ITEM #24.

>> SECOND.

>> MAYOR ISHII: AGAIN, UNLESS THERE ARE ANY OBJECTIONS FROM COUNCILMEMBERS WE CAN ALL BE RECORDED AS AYES. OKAY, GREAT. THANK YOU SO MUCH. SO FOR ITEM #25, I JUST WANT TO MAKE SURE

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THAT FOLKS KNOW THAT THE APPEAL WAS WITHDRAWN AND THAT THE ZAB DECISION THEREFORE STANDS. AND ALSO, WE ARE ALLOWING STILL FOR PUBLIC COMMENT THOUGH, SO IF ANYONE HAS ANY PUBLIC COMMENT ON THE ZAB APPEAL, THAT'S ITEM #25, I INVITE YOU TO COME UP NOW. OKAY, THANK YOU SO MUCH. I APPRECIATE IT. SO MOVING ONTO OUR OTHER ACTION ITEMS. THERE IS ONLY ONE ITEM NOW IN OUR ACTION ITEMS WHICH WAS MOVED FROM CONSENT, THAT'S ITEM #22, THE SEATING ARRANGEMENT FOR THE COUNCIL, VICE MAYOR, REVISION, MAYORAL APPOINTMENT TO STUDENT U.C. STUDENT RELATIONS COMMITTEE AND 2025 COUNCIL APPOINTMENTS. I AM THE AUTHOR OF THIS. AND SO I WOULD LIKE TO INTRODUCE THIS ITEM FIRST TO SAY THERE'S A SUPPLEMENTAL WHICH IS COUNCILMEMBER KESARWANI AND IF CASE SHE IS NOT ABLE TO MAKE IT, COUNCILMEMBER O'KEEFE IS LISTED. YEAH, I THINK ACTUALLY JUST STARTING THIS OFF, I WANT TO ASK IF THERE ARE ANY PUBLIC COMMENTS ABOUT THIS ITEM? DID YOU HAVE A COMMENT ON THIS ITEM?

>> [OFF MIC] I HAD A COMMENT ON ITEM #26.

>> MAYOR ISHII: I'M VERY SORRY.

>> I WAS IN THE BATHROOM. I HAD TO TAKE A BREAK.

>> MAYOR ISHII: TOTALLY UNDERSTANDABLE. I'M SO SORRY, BUT YOU KNOW WHAT --

>> MIDDLE INCOME PEOPLE.

>> MAYOR ISHII: MA'AM, I'M SO SORRY.

>> IT'S NOT FOR LOW-INCOME OR NON-INCOME PEOPLE.

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>> MAYOR ISHII: THANK YOU VERY MUCH. ACTUALLY, WE HEARD --

>> SO THAT IS WHAT HAS TO BE ADDRESSED.

>> MAYOR ISHII: WE HEARD YOUR COMMENT PREVIOUSLY, I'M SO SORRY, MA'AM BUT WE ARE ON -- EXCUSE ME. EXCUSE ME.

>> HOMELESS PEOPLE IN BERKELEY. 35,000. AND YOU WANT TO GO THROUGH.

>> MAYOR ISHII: EXCUSE ME, MA'AM, I'M SO SORRY, BUT WE ARE ACTUALLY ON ITEM #22 RIGHT NOW.

>> WHAT IS WRONG WITH YOU?

>> MAYOR ISHII: EXCUSE ME, I'M SO SORRY, THANK YOU FOR YOUR COMMENTS EARLIER, I APPRECIATE YOU BRINGING THIS FORWARD TO THE COUNCIL BUT I THINK THAT --

>> THOSE PEOPLE WHO NEED IT THE MOST.

>> MAYOR ISHII: I'M SORRY, CAN YOU REMIND ME YOUR NAME?

>> THE MOST. THEY DON'T NEED YOUR PITY. THEY DON'T NEED --

>> MAYOR ISHII: MARK, CAN YOU PLEASE REMIND ME OF THIS WOMAN'S NAME SO I CAN ADDRESS HER BY NAME.

>> CITY CLERK: MARIAN.

>> MAYOR ISHII: MARIAN, I'M SO SORRY, I APPRECIATE YOUR COMMENTS, THANK YOU VERY MUCH.

>> CAN'T HELP THEM THEN WHAT THE HELL ARE YOU DOING IN OFFICE?

>> MAYOR ISHII: THANK YOU VERY MUCH FOR YOUR COMMENTS. I APPRECIATE YOUR COMMENTS BUT --

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>> SO TAKE CARE OF THAT.

>> MAYOR ISHII: THIS IS NOT THE TIME FOR COMMENTS ON THAT ITEM.

>> YOU NEED TO GO AND --

>> MAYOR ISHII: WE'VE ACTUALLY ALREADY VOTED ON THIS ITEM.

>> TALK ABOUT YOUR CONSCIENCE. YOUR CONSCIENCE. ON HOW YOU PUT THESE PEOPLE IN --

>> MAYOR ISHII: THANK YOU SO MUCH. I REALLY APPRECIATE YOUR COMMENT. THANK YOU SO MUCH. I REALLY APPRECIATE YOUR COMMENTS THIS EVENING AND I THANK YOU SO MUCH FOR BEING HERE. BUT I WOULD LIKE YOU TO BE RESPECTFUL OF EVERYONE'S TIME AND THE FOLKS WHO ARE HERE TO HEAR THIS NEXT ITEM.

>> RESPECTFUL? RESPECTFUL OF THIS?

>> MAYOR ISHII: I WILL ASK MY STAFF TO SPEAK WITH YOU, AND YOU ARE WELCOME TO FINISH GIVING YOUR COMMENTS TO THEM. MY STAFF MEMBER ANTHONY IS HERE AND HE WILL SPEAK WITH YOU.

>> ANTHONY AND I HAVE ALREADY TALKED.

>> MAYOR ISHII: I KNOW HE HAS GIVEN YOU HIS CARD. I'M SO SORRY, I'M GOING TO ASK YOU TO STEP DOWN FROM THE MOMENTS.

>> YOUR CONSCIENCE, NEED TO HELP THESE PEOPLE.

>> MAYOR ISHII: MA'AM? MARY ANNE?

>> IF YOU DON'T DO IT, I FEEL SORRY FOR YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU TO YOUR COMMENTS AND THANK YOU TO ANTHONY FOR HELPING HER. OKAY. ARE THERE ANY OTHER PUBLIC

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COMMENTS? OKAY. DO WE HAVE ANY COMMENTS FROM COUNCILMEMBERS? YES, COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU VERY MUCH, MADAM MAYOR AND THANK YOU TO MY COLLEAGUES FOR YOUR INDULGENCE. I HAVE A POINT OF CLARITY. THE SUP 2 IS REFLECTING THAT COUNCILMEMBER KESARWANI AND COUNCILMEMBER O'KEEFE BEING APPOINTED TO THE A.C. TRANSIT AND LIAISON ENTERING INTO LIAISON COMMITTEE. I JUST WANT TO CHECK THAT IN MY NOTES. THANK YOU. SO THANK YOU SO MUCH. I RESPECT AND APPRECIATE THE DIVERSITY OF PERSPECTIVES AND RANGE OF EXPERIENCES PROPOSED BY THE COMMITTEE ASSIGNMENTS. GIVEN THE HILLS PRONE TO FIRE RISK AND EVACUATION, I AGREE THAT COUNCILMEMBER BLACKABY WOULD BRING A TIMELY AND CRITICAL EXPERIENCE TO THE COMMITTEE. THOSE WHO HAVE GONE THROUGH THE LEGISLATIVE PROCESS MANY TIMES AND CONTRIBUTE [READING RAPIDLY] CONCERNING OF THE APPOINTMENT OF CEREMONIAL VICE MAYOR, HAS GONE BY -- YET SHE HAS NEVER BEEN VICE MAYOR, WHICH WAS ALWAYS STRANGE TO ME. I BELIEVE SUCH AN ORDER WOULD BE FAIR AND OBJECTIVE. AND IN ADDITION TO APPOINTING COUNCILMEMBER BARTLETT TO LAND USE AND BLACKABY TO PUBLIC SAFETY, I RECOMMEND APPOINTING COUNCILMEMBER HUMBERT TO -- I LIKEWISE ASK WE DO CHRONOLOGICALLY APPOINTED IN ORDER OF HIGHEST VOTE GETTER, THANK YOU.

>> MAYOR ISHII: WAS THAT THE MOTION, COUNCILMEMBER TAPLIN?

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>> T. TAPLIN: YEAH, I MOVE.

>> SECOND.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. IT IS NOT MY M.O. TO YELL OR POINT FINGERS OR SHAME OTHERS FOR DISAGREEMENT, BUT I AM APPALLED AND SADDENED ABOUT WHAT MY COLLEAGUES ARE TRYING TO DO. I WANT TO PUT THIS IN CONTEXT. THIS IS THE SECOND MEETING OF OUR NEW MAYOR, THE FIRST WOMAN OF COLOR TO BE MAYOR AND FIRST ASIAN AMERICAN MAYOR. I'M THE FIRST LATINA TO EVER SERVE ON THE CITY COUNCIL, I WAS THE FIRST OPENLY QUEER LATINA WOMAN TO SERVE ON THE COUNCILMEMBER, I REPRESENT DISTRICT 7, SUPER MAJORITY AND REPRESENT THOUSANDS OF ENGAGED, INTELLIGENT, IMPASSIONED PEOPLE AND DO SO WHOLEHEARTEDLY AND TO DO SO I SOMETIMES MUST DISSENT AND I WILL WHEN I AND MY DISTRICT DISAGREE FROM COUNCIL CONSENSUS. WHEN I DO I KNOW I'M NOT DISSENTING ALONE, I KNOW THERE'S A LOT OF POWER IN THAT AND MAKES FOR GOOD GOVERNMENT AND I FIGHT FOR A BETTER FUTURE FOR US ALL. SOME OF MY COLLEAGUES DISSENT IT'S THREATENING. ESPECIALLY AFTER A UNITED FRONT AND SUPPORT OF OUR IMMIGRANT COMMUNITY AND GROWING FASCISM AT THE FEDERAL LEVEL, I'M SO DISHEARTENED RUN WITH THE TRUMPIST TACTIC OF SILENCING DISSENT. AND WHAT THIS SIGNALS TO OUR YOUNG RESIDENTS, ESPECIALLY YOUNG RESIDENTS OF COLOR OF WHOM I ONLY REPRESENT SOME OF THEM, SAYING THAT THEIR VOICES SHALL BE SAT TO

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THE SIDE. I WANT TO MAKE IT CLEAR. THIS IS HARD. AND HOW INACCESSIBLE POLITICS IS, ESPECIALLY LOCAL POLITICS FOR YOUNG PEOPLE AND FOR DISSENTING VOICES IS AND HAS PUSHED OUT SO MANY PEOPLE FROM THESE SPACES. IT HAS MULTIPLE TIMES PUSHED ME OUT OF THESE SPACES. UNFORTUNATELY AND TRUTHFULLY, MY COLLEAGUES ARE PLAYING A GAME I DON'T WANT TO PLAY. AND I FIND THIS TO BE A MATTER OF IMMATURITY. I KNOW THAT WE ALL FEEL A REALLY BIG SHIFT FROM THE RESPONSE TO OUR NEW ELECTION AND PART HAS TO DO WITH EXHAUSTION OF OUR YOUNG PEOPLE, MANY OF WHOM WILL FEEL THE BRUNT OF MARGINALIZATION HANDED DOWN FROM THE FEDERAL GOVERNMENT. AND HOW MUCH TIME THIS TOPIC TOOK UP, IT'S FRIVOLOUS AND PETTY. IF IT DOES GET TO DECIDE POLICY SO DRASTICALLY, IT'S NOT WORKING AS DESIGNED IT SHOULD BE REFORMED A NEW. I WANT TO BE CLEAR ABOUT THE MESSAGE THIS MAY BE SENDING I'VE BEEN TRUE TO MYSELF, MY DISTRICT, TRUE TO THIS WORK AND COMMITMENT TO WORK WITH YOU ALL WITH KINDNESS OF SPIRIT AND EMPATHY, TRYING SO HARD AND THAT I AM NOT ON AGENDA AND RULES I WANT YOU TO KNOW YOU HAVE BRUISED THE RELATIONSHIPS I THOUGHT WE WERE BUILDING. I THOUGHT YOU WERE BETTER THAN THIS, REGARDLESS OF WHAT HAPPENS I WILL NOT BACK DOWN FROM DOING WHAT IS RIGHT AND DELIVERING FOR MY CONSTITUENTS OR FOR THE CITY. THANK YOU.

>> MAYOR ISHII: I WOULD LIKE TO CREATE A SUBSTITUTE MOTION TO KEEP THE COUNCILMEMBER APPOINTMENTS AS IN MY ITEM #22. ALSO

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MAKING THAT SWITCH BETWEEN COUNCILMEMBER BLACKABY AND COUNCILMEMBER BARTLETT ON LAND USE AND PUBLIC SAFETY. SO THAT WOULD JUST BE A DIRECT SWITCH. AND OF COURSE INCLUDING MY SUPPLEMENTAL AS WELL.

>> C. LUNAPARRA: SECOND.

>> MAYOR ISHII: SO, WE HAVE BEFORE US TWO MOTIONS. I KNOW HAVE COMMENTS AS WELL, COUNCILMEMBER TAPLIN. I WILL ALLOW YOU TO HAVE THOSE COMMENTS, OF COURSE.

>> T. TAPLIN: I'M A GAY BLACK MAN. I WAS RAISED IN SECTION 8 HOUSING, I'M THE SON OF A SINGLE AMERICAN WHO HAS M.S. AND DIABETES, I REPRESENT THE NEIGHBORHOOD I GREW UP IN, WEST BERKELEY. I HAVE SENIORS WHO HAD THEIR HOMES FORECLOSED, I HAVE ISOLATED ELDERS WHO HAVE NOTHING. I'M NOT A BERKELEY GRADUATE. BUT I REPRESENT MY DISTRICT. THE CHOICES I MAKE ARE IN THE INTEREST OF THE CITY AND MY CONSTITUENTS. I HAVE NOTHING AGAINST ANY OF MY COLLEAGUES. I STRIVE TO FIND THINGS TO WORK WITH ALL OF YOU ON AND I REVEL IN THAT AND CHERISH, CHERISH EACH OF THE RELATIONSHIPS I BUILD WITH EACH AND EVERY ONE OF YOU, WHETHER WE AGREE, DISAGREE, FIGHT, WE ARE ONE COUNCIL, I DON'T WISH TO TREAT IT AS A JOUST BUT I CONSIDER IT A SERVICE DISCOURSE IF MEMBERS WITH DIFFERING IDENTITIES ARE PROHIBITED FROM DISPUTE. THANK YOU.

>> MAYOR ISHII: OTHER COMMENTS? I HAVE ONE MORE COMMENT. I WANT

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TO SAY IT'S UNUSUAL FOR COMMITTEE ASSIGNMENTS TO BE CHALLENGED THIS YEAR, TYPICALLY THE MAYOR HAS MADE APPOINTMENTS AND THE COUNCIL APPROVES THEM. I WORK HARD TO ASSIGN FOLKS THINGS I APPROPRIATE GIVEN YOUR INTEREST AND AREAS OF EXPERTISE. JUST THAT I'M DISAPPOINTED THERE'S SUCH OPPOSITION TO COUNCILMEMBER LUNAPARRA BEING ON AN AGENDA AND RULES COMMITTEE. WE HAVE AN ORDER BASED ON SENIORITY. I SEE THIS, MY ELECTION AS A CHANCE TO SHAKE THINGS UP AND GIVE OTHERS LEADERSHIP OPPORTUNITIES. LET'S BE CLEAR ABOUT WHAT THAT MEANS. THE AGENDA AND RULES COMMITTEE CAN SEND AN ITEM BACK TO COMMITTEE FOR WORK BUT DOESN'T HAVE THE POWER TO VETO, IT'S NOT AN EXECUTIVE COMMITTEE OR MINI COUNCIL, IT'S TO STREAMLINE OUR COUNCIL AND DETERMINE IF AN ITEM NEEDS MORE WORK, IF IT HAS THAT MUCH POWER, THAT'S SOMETHING WE SHOULD LOOK AT BECAUSE ONE COMMITTEE SHOULD NOT HAVE THAT MUCH POWER. THIS IS NO REFLECTION ON MY FEELINGS FOR COUNCILMEMBER HUMBERT, I HAVE SO MUCH RESPECT FOR YOU, AND I'M SURE YOU WOULD DO AN EXCELLENT JOB, I JUST WANT TO GIVE OTHERS AN OPPORTUNITY. I WANT TO SPEAK TO THE PART OF THE ITEM ABOUT VICE MAYORS AND SAY OF COURSE THAT WAS NOT MEANT AS AN INSULT AT ALL, I AM VERY SORRY, COUNCILMEMBER KESARWANI IF YOU ARE INSULTED BY THAT. I WANT TO SAY THIS WAS MY HOPE AND VISION FOR BERKELEY WE GIVE OTHERS OPPORTUNITY FOR LEADERSHIP. WE WENT BACK AND FORTH BETWEEN A LONG TIME AND NEWER COUNCILMEMBER TO ALLOW FOR THAT TO HAPPEN.

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AND YOU KNOW, I THINK THAT THE QUESTION WHEN COMING BACK TO COUNCILMEMBER LUNAPARRA BEING ON AGENDA AND RULES ARE NOT, THE QUESTION WE SHOULD BE ASKING OURSELVES IS IF COUNCILMEMBER LUNAPARRA WILL PREPARE FOR THESE, NOT IF YOUR POLICIES ALIGN, THIS IS NOT A POLITICAL APPOINTMENT, THIS IS A PROCESS ONE. ABOUT PROCESS AND MOVING THINGS FORWARD. I WANT TO LEVEL SET THERE AND SHARE MY FEELINGS ON THIS MATTER. I ALSO WANT TO THANK MY COLLEAGUES FOR ENGAGING ON THIS IN A CIVIL MANNER, I REALLY APPRECIATE ALL OF YOU AND THE WORK YOU DO. REGARDLESS OF WHAT HAPPENS WE WILL ALL MOVE FORWARD TOGETHER. SO THERE'S A SUBSTITUTE MOTION ON THE FLOOR. I WOULD LIKE THE CLERK TO CALL ROLL PLEASE.

>> CITY CLERK: OKAY, SUBSTITUTE MOTION TO ADOPT THE COUNCIL APPOINTMENTS AS SUBMITTED IN THE ITEM WITH THE ADDITION IN SUP 2 FOR THE A.C. TRANSIT COMMITTEE AND TO INCLUDE SWITCHING COUNCILMEMBERS BARTLETT AND BLACKABY ON THE PUBLIC SAFETY AND LAND USE COMMITTEE. ON THE SUBSTITUTE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: NO.

>> TAPLIN?

>> T. TAPLIN: NO.

>> CITY CLERK: BARTLETT IS ABSENT. TREGUB?

>> I. TREGUB: ABSTAIN.

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>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: NO.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: [OFF MIC]

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: THAT FAILS. WE CAN GO TO THE OTHER MOTION FOR AGENDA AND RULES AND LAND USE COMMITTEE TO SWITCH COUNCILMEMBERS HUMBERT AND LUNAPARRA. AND ON THE PUBLIC SAFETY COMMITTEE AND LAND USE TO SWITCH COUNCILMEMBERS BARTLETT AND BLACKABY. TO INCLUDE THE A.C. TRANSIT COMMITTEE APPOINTMENT IN THE SUPPLEMENTAL. AND FOR THE VICE MAYOR ORDER THAT THE ORDER FOR THE SEQUENCE FOR VICE MAYOR WOULD BE BY SENIORITY.

>> R. KESARWANI: YES, THAT'S CORRECT.

>> CITY CLERK: AND IN THE EVENT OF A TIE IN SENIORITY, THAT TIE WOULD BE BROKEN BY THE PERSON WHO RECEIVED MORE VOTES IN THEIR MOST RECENT ELECTION.

>> R. KESARWANI: YES.

>> CITY CLERK: I GUESS WE'LL FIGURE THAT ONE OUT. AND AMEND THE

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RESOLUTION ACCORDINGLY. OKAY. ON THE MAIN MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: COUNCILMEMBER BARTLETT IS ABSENT. COUNCILMEMBER TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: NO.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: NO.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: CAN I MAKE A COMMENT IN CONNECTION WITH MY VOTE, IS THAT PROTOCOL?

>> MAYOR ISHII: I'LL ALLOW IT.

>> M. HUMBERT: I WANT TO SAY THAT I HAVEN'T LOBBIED FOR AN APPOINTMENT TO THE AGENDA AND RULES. AND I HAVE TREMENDOUS, TREMENDOUS RESPECT FOR COUNCILMEMBER LUNAPARRA. AND I WAS MOVED BY HER COMMENTS. BUT HAVING HEARD THAT FOR OTHER COUNCILMEMBERS ON THE DAIS WOULD LIKE ME TO SERVE, I WOULD BE WILLING TO DO SO,

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AND HENCE I'M GOING TO VOTE YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: NO.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> MAYOR ISHII: OKAY, WE ARE FINISHED WITH ACTION ITEMS. OUR INFORMATION ITEMS WERE ALREADY PRESENTED BY OUR CITY AUDITOR. AND WE ARE, ARE THERE ANY PUBLIC COMMENTS FOR ITEMS NOT ON THE AGENDA WE DIDN'T HEAR EARLIER IN THIS MEETING? SOMEONE FROM THE AUDIENCE IS COMING FORWARD.

>> HI MAYOR AND CITY COUNCIL. MY NAME IS NEMOTA DINA [INDISCERNIBLE], I AM SPEAKING TO YOU GUYS TONIGHT AS A PARENT OF A 7TH GRADER AT LONGFELLOW MIDDLE SCHOOL. I'M COMING TO YOU GUYS WITH CONCERNS THAT OTHER PARENTS AND MYSELF HAVE AND THE NEIGHBORS FOR THE UPCOMING WORKFORCE HOUSING, WHICH I AM IN FAVOR OF TEACHERS AND STAFF HAVING AFFORDABLE HOUSING. THE CONCERN IS WITH THE TRAFFIC, WHICH IS GOING TO OCCUR ON VIRGINIA AND CURTIS. WHEN OUR SCHOOL ENTRY AND DROP-OFF SWITCHES AT THE END OF FEBRUARY/MARCH WHEN THAT PROJECT BEGINS. WE'VE ALREADY HAD --

>> MAYOR ISHII: DO YOU WANT TO JUST FINISH SURE SENTENCE?

>> YEAH. THERE'S ALREADY BEEN INCIDENTS WHERE STUDENTS AND OTHER PEOPLE HAVE BEEN STRUCK AND JUST ASKING THE CITY TO WORK WITH THE SCHOOL DISTRICT TO MAKE IT SAFE FOR STUDENTS.

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>> MAYOR ISHII: THANK YOU VERY MUCH. I APPRECIATE YOU BRINGING THAT FORWARD TO US. COLLABORATION IS IMPORTANT. I WILL ASK MY STAFF ALSO IF YOU CAN MEET, JUST TO MAKE SURE YOU GET THE REST OF THAT COMMENT. THANK YOU SO MUCH, ARE THERE ANY OTHER PUBLIC COMMENTS? ON ZOOM?

>> CITY CLERK: THERE IS ONE NON-AGENDA COMMENT ON ZOOM. THAT'S ROBERT.

>> HELLO, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> OKAY. MY CONCERN IS THAT I GOT A TICKET ON DANA AND DURANT AND I PAID MY PARKING BUT I MISPLACED THE TICKET, I PUT IT ON THE RIGHT SIDE OF THE DASHBOARD INSTEAD OF THE LEFT SIDE TO TRY TO MAKE IT EASIER FOR THE METER MAID, BUT APPARENTLY THEY TOOK A PICTURE. I WENT TO DISPUTE THE TICKET AND THEY REVIEWED IT AND THEY SAID THAT IT WAS NOT ACCEPTABLE TO PUT IT ON THE RIGHT SIDE INSTEAD OF THE LEFT SIDE, OR ON THE FRONT. SO I WANTED TO FIGHT IT BUT IT WAS CHRISTMAS, I WAS OUT OF MONEY, I'M ON A FIXED INCOME, I'M A SENIOR CITIZEN, I ONLY GET SOCIAL SECURITY, I'M DISABLED. SO WHAT HAPPENED WAS BY THE TIME I GOT THE MONEY, I WENT TO DISPUTE IT, TIME WENT BY, BY THE TIME I WENT TO GO, IT WAS CLOSED, IT'S ONLY OPEN FOUR DAYS A WEEK FROM 10:00-2:00, IF YOU PAY ONLINE YOU HAVE TO PAY FINES. FEES. BY THE TIME I PAID IT, IT WAS $73. WE SHOULD MAYBE FOLLOW A SAN FRANCISCO SYSTEM,

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IF YOU TAKE THE MONEY OUT OF MY ACCOUNT, YOU KNOW I PAID, AND I WROTE IN MY RESPONSE WHEN I WROTE TO APPEAL MY TICKET THAT I PAID BUT THEY APPARENTLY, THAT WASN'T GOOD ENOUGH, MY WORD WASN'T GOOD ENOUGH. BUT I FEEL LIKE THE PROOF IS I PAID THE TICKET. SO I THINK IT'S JUST KIND OF A GAME TO NOT ACCEPT MY RESPONSE THAT I PAID IT. WHICH YOU HAVE THE PROOF BECAUSE YOU TOOK MONEY OUT OF MY ACCOUNT. SO I FEEL IF I'M GOING TO PAY $73 THEN YOU SHOULD PAY -- IF I'M NOT GOING TO BE HONORED FOR PAYING THE PARKING TICKET, YOU SHOULD RETURN THE MONEY I PAID FOR THE PARKING METER OR HAVE A DIFFERENT SYSTEM.

>> MAYOR ISHII: SORRY, BUT YOUR TIME IS UP. SORRY, MARK.

>> CITY CLERK: THAT'S FINE.

>> MAYOR ISHII: ANY OTHER PUBLIC COMMENT? OKAY. I WOULD LIKE TO MAKE A MOTION AT THE REQUEST OF COUNCILMEMBER BLACKABY TO ADJOURN IN MEMORY OF THOSE WHO DIED, PERISHED IN THE FIRES IN SOUTHERN CALIFORNIA. IS THERE A MOTION? I GUESS I'M MAKING THE MOTION. IS THERE A SECOND?

>> SECOND.

>> MAYOR ISHII: THANK YOU. IF THERE'S NO OBJECTIONS, THEN I WILL HAVE US MARKED ALL AS AYE.

>> CITY CLERK: OKAY, WE ARE ADJOURNED.

>> MAYOR ISHII: THANK YOU SO MUCH. THANK YOU, EVERYONE. THANKS FOR BEING HERE. [ADJOURNED 8:46 P.M.]

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